TREASURY MANAGEMENT SERVICE
MASTER AGREEMENT
(Only for Business Advantage Checking & Business Elite Checking)

This Treasury Management Service Master Agreement ("Master Agreement") is entered into as of _______________, by and between ___________________________, a________________________ ("Company" or "Client") and Hanmi Bank, a California Corporation ("Bank"). Company desires to contract with Bank for the provision of certain Treasury Management Services ("Services") selected below. This Master Agreement incorporates the Hanmi Business Online Banking Agreement and also incorporates by references all terms and conditions detailed in the attached individual agreements for the selected services ("Service Agreements"). By completing the following enrollment information and using the Services, Company is accepting all of the terms and conditions in the applicable Service Agreements. By signing this Master Agreement, Company expressly acknowledges that it has received, read, understood and accepts all terms and conditions of this Master Agreement.

General Information			
Branch Number :	☐ New Client	☐ New Service	☐ Other
Client Name			
Address			
City, State, and Zip			
Name of Main Contact			
Phone Number			
Email Address			
Service Charge Account			
EIN / TIN (s)			
List of Account (If applicable)			
Parent Company Information (If applicable)	Name:		EIN:

Services				
☐ Commercial ($30/month)				
☐ Business Advantage Checking ☐ Business Elite Checking (* = requires Business Elite)				
ACH ACH Credit: ☐ Payment ACH Debit*: ☐ Collection			**CCV** ☐ Pick-Up ☐ Change Order	**HRCD** ☐ Same Day Credit ☐ Next Day Credit
Lockbox ☐ Lockbox	**Positive Pay*** ☐ Payee ☐ ACH	**Tax Payment** ☐ Tax Payment	**Wire** ☐ Domestic ☐ International	**Wire Lite** (5 or less per month) ☐ Domestic ☐ International
RDC* ☐ RDC (Remote Deposit Capture)		☐ Multi Feeder ($950)	☐ Single Feeder ($600)	
		☐ Reconditioned Scanner ($350)	☐ No Scanner Order	
		☐ Pay in Full	☐ Scanner Payment Plan (☐ 6 Month ☐ 12 Month)	

Administrator User			
Administrator Name		Phone Number	
Email Address		Prefer Login ID	
Transaction Control Option			
☐ ACH	☐ Approve by two different users (Dual Approval)	☐ No	
☐ Wire	☐ Approve by two different users (Dual Approval)	☐ No	
Comments			

Authority. Each party represents and warrants that he or she has been duly authorized to execute this Master Agreement on behalf of an entity or another person and constitutes such party's valid and binding agreement in accordance with the terms thereof.

1. Hanmi Bank Treasury Management General Agreement

This Agreement is a contract that establishes the rules that govern Company's electronic access to its accounts using Hanmi Business Online Banking Services (the "System"). By signing the Master Agreement or using the System, Company accepts all terms and conditions of this Agreement.

1.1 Definitions. The terms used in this Agreement shall have the meanings indicated in each Agreement and in Exhibit A.

1.2 Access. To use the System, you must have at least one checking account at the Bank, access to Internet service, and a valid e-mail address (HotBot and other intermediary e-mail addresses may not be used). You are responsible for the set-up and maintenance of your business computer and modem. You agree that we are not responsible for any errors or failures from any malfunction of your computer or any virus or other computer problem related to the use of the System Services. You agree to use the Services solely for business purposes and not to use the System to transfer funds to or from any account established for personal, family or household purposes.

1.3 Enrollment and Accounts. You must complete and return the Master Agreement to us for our approval. If you are approved, we will send you confirmation of our acceptance of your enrollment and your assigned login ID and temporary password. You authorize us to obtain information about you from others (which may include credit reporting agencies) as part of our review of your enrollment application, and from time to time thereafter. You agree to provide us with information as we request, from time to time. Business Online Banking Services can be used to access only the Accounts which you have designated for access by the System in your Master Agreement. You can add or delete any of your Accounts from this Agreement by completing a new Master Agreement or providing a written amendment request acceptable to the Bank in its sole discretion. Access to your Accounts through the System will be based upon the identification of users and authority levels specified by you in your Master Agreement and other related System documents.

1.4 System Services. You can use the System to check Account balances, view Account histories, transfer funds between your Accounts, order checks, make stop payment requests, view checks and change your address. You may also be eligible to use the System for additional Services, such as wire transfer and automated clearinghouse ("ACH") transfers, if approved by us and subject to any additional terms and conditions as detailed in the individual Service Agreements as may be applicable.

1.4.1 Payment Order (Wire Transfers and ACH)

(i) General Rules Regarding All Payment Orders. Payment Orders include, without limitation, wire transfers and transfers through an automated clearinghouse, however initiated. You may request Payment Orders from those of your Accounts as we agree, in the format, times, and following the restrictions as we may impose e from time to time. We may require you to designate whether you wish to conduct repetitive Payments Orders, non-repetitive Payment Orders, or both repetitive and non-repetitive Payment Orders.

(ii) Rejection of Payment Order. You acknowledge that we may reject any Payment Order that does not comply with this Agreement or with the parameters as are set by us from time to time for Payment Orders. We may reject, without liability, any Payment Order, including a "Value-Dated" Payment Order, if you fail to maintain sufficient available funds in a designated account for the amount of each Payment Order you request.

(iii) Cancellation of Amendment of Payment Order. A Payment Order may be canceled or amended only if we have not transmitted the Payment Order or credited the Beneficiary's account. To be effective, the communication canceling or amending the Payment Order must (i) comply with the agreed upon Security Procedures and with such other terms and conditions as we set; and (ii) be received by us at a time and in a manner that gives us a reasonable opportunity to act on the communication. We will have no liability if cancellation or amendment is not effected.

(iv) Foreign Currency Transactions. You acknowledge that foreign currency Payment Orders must be based on a currency that we trade and that all rates of exchange will be the rate in effect at the time the Payment Order is received by us or at any other rate as is agreed to by the parties. If the Payment Order is returned for any reason, you agree to accept any foreign money credit refund in United States Dollars, based on our then-current buying rate converting the currency to United States Dollars on the date of refund, less any charges and expenses incurred by us.

(v) Inconsistency of Name and Number. You acknowledge and agree that if a Payment Order describes the Beneficiary, the Beneficiary Bank or any intermediary Bank inconsistently by name and/or number, payment of the Payment Order transmitted by us may be made on the basis of the account number or the bank number alone even if the number identifies a person or bank different from the named Beneficiary, Beneficiary Bank or Intermediary Bank, and that your obligation to pay the amount of the Payment Order to us is not excused in those circumstances.

(vi) Company Only Transactions. You shall not submit a Payment Order on behalf of a third party without our prior written consent.

<u>1.4.2</u> <u>Terms and Conditions Applicable to Payment Orders through ACH Services</u>. This Service permits you to initiate credit entries or payments to a third party ("Credit Entries") and/or debit entries or collections from a third party ("Debit Entries") in accordance with these terms and conditions, the current NACHA rules (the "Rules"), and within the ACH exposure settlement limits as we establish for your ACH transactions from time to time and as we otherwise agree to in writing. We agree to act as the Originating Depository Financial Institution with respect to your Credit Entries and/or Debit Entries. "Entries" as used herein in this Section 1.4.2 shall mean Credit Entries and/or Debit Entries as agreed between the parties.

(i) No Right to Cancel or Amend. You have no right to cancel or amend any Entry after we have submitted an Entry to the ACH.

(ii) Right to Reject. We have no duty to submit Entries and can refuse to submit to the ACH any Entries if the Entries violate any agreement between us, there is not sufficient funds available to pay for any Credit Entries, or the requested Entries would exceed the ACH exposure settlement limit we have set for you.

(iii) Company Representations and Warranties. It shall be the responsibility of the Company that the origination of ACH Transactions complies with the laws of the United States. This includes, but is not limited to sanctions enforced by the Office of Foreign Assets Control ("OFAC"). You represent and warrant to us that all Entries are complete, accurate, authorized, and formatted in accordance with NACHA Rules. As required by NACHA Rules, you warrant that each person shown as the receiver on an Entry initiated by us on an Entry on your request has authorized the initiation of the Entry in the amount and on the date we are instructed to process the Entry and the authorization is operative at the time we transmit the ACH Entry. You further represent to the Bank that you will retain the authorization for a period of two (2) years after the termination or revocation of the authorization and provide us with a copy of the authorization upon request.

(iv) Notice of Returned Entries. We will notify you of the receipt of a returned Entry from the ACH generally no later than one Business day after the Business day of receipt. We have no obligation to retransmit a returned Entry to the ACH if we complied with the terms of this Agreement with respect to the original Entry.

(v) Payment. You agree to maintain sufficient available deposit balances in a designated account adequate to cover any Credit Entries you initiate. You will pay us the amount of each Credit Entry for any Entry information processed by us on the date we require which may be either the date your ACH Entries are submitted to the ACH or the date which you designate for processing the Entries through the ACH. We may, without prior notice or demand, obtain payment of any amount due and payable to us by debiting your designated account(s). We will credit the account with any amount received by us by reason of the return of an Entry for which we have previously received payment from you. That credit will be made as of the Business day we receive the returned Entry. The balance and the activity information that you obtain through the System are as of the end of the previous Business day and memo posted transaction activity for the day of inquiry.

1.5 Hours of Access. You can use the System seven days a week, twenty-four hours a day, although some or all of Business Online Banking Services may occasionally not be available due to emergency or scheduled maintenance. We will use reasonable efforts to post notice of any extended periods of non-availability on the System website.

1.6 Your Password. For security purposes, you are required to change your password upon your initial login to the System. You are responsible for determining what password you will use and the identity of your password is not communicated to the Bank. You agree that we are authorized to act on instructions received under your password without any further verification obligations. You accept full and sole responsibility for the confidentiality and security of your password and agree to change your password regularly. For your security, upon three unsuccessful attempts to use your password, your access to the System will be revoked. To re-establish your authorization to use the Business Online Banking Services, you must contact us to have your password reset or to obtain a new temporary password. We recommend that you create a password, using a minimum of six characters that utilizes both upper case alpha and numeric characters for purposes of security. Your password should not be associated with any commonly known personal identification, such as social security numbers, address, date of birth or names of children, and should be memorized rather than written down.

1.7 Authorization and Processing Transfer Requests. If a transfer request for a transfer to or from any Account, including payment orders for processing through Fed wire or other large dollar payment systems (or any request for cancellation or amendment of any such a request, a “Request”) is received by Hanmi Bank and purports to have been transmitted or authorized by you, it will be deemed effective as your Request or entry and you will be obligated to pay the amount of the Request, even if the Request was not actually authorized by you, provided we acted in compliance with the security procedure(s) chosen by you. You agree that the authenticity of Requests and other instructions to us received through the System will be verified pursuant to the security procedures contained in the System Services. You acknowledge that the Bank has offered you the option of utilizing one of several types of security procedures, and that the one you have chosen to use is commercially reasonable. You also understand and agree that the security procedures are not for the purpose of detecting error. Hanmi Bank recommends you establish two levels of authority to request and transmit monetary transfers to the Bank.

1.8 Stop payments. You may order, through Business Online Banking Services, stop payments on any of your checks, as long as they have not yet been paid by us. You must be able to provide the correct check number and exact amount of the check for a stop payment order to be valid. Any loss suffered by you due to your failure to accurately identify the check in the stop payment order will be your responsibility and not the Bank’s. No stop payment order will be effective against a check that has paid prior to the time that we have both received the stop payment order and had a reasonable period of time to respond to the order. You understand that you are solely responsible for determining whether a check has or has not been paid. At the time you submit a stop payment order to the Bank through Business Online Banking Services, you agree to access the appropriate account and data bases through the System and determine whether the check to which the stop payment order relates has or has not already been paid. You understand that the information available through the System regarding account status, and specifically whether individual checks have or have not been paid, is updated only once in each 24-hour period. As a result, you understand that the information available via the System regarding the status of individual checks on any given Business day will be limited to transactions that were processed on the previous Business day. You acknowledge that the information regarding the status of individual checks will not include transactions - including cash payments – on a check that occur on the same Business day as the date of receipt of the stop payment order. You acknowledge that a transaction search through the System will not necessarily reveal whether a check has been paid until the Business day after the Business day on which we receive the stop payment order. Any loss suffered by you due to your decision to issue a new or replacement check, or to take any other action, based on information in the System prior to the next Business day after the Business day on which the stop payment order has been received by us will be your responsibility and not the Bank’s. Hanmi Bank may, but is not obligated to, notify you if we determine through the process of updating the account status on the System that a check was paid on the day the stop payment order was received by us. Stop payment orders remain in effect for six months. You may cancel stop payment orders by writing to us at Hanmi Bank, Electronic Banking Department, 3660 Wilshire Blvd. Suite 1000, Los Angeles, CA 90010. Stop payment orders are automatically canceled when the account on which the check is drawn is closed or at the end of the term of the order (unless renewed by you). Under certain circumstances, a holder of the check may be entitled to enforce payment against you even when a stop payment order is in effect. The System may not be used to stop payment on any automatic entry, such as automatic monthly drafts or ACH debit or credit entries, and we may ignore any attempted stop payment orders transmitted through the System relating to such items without any further notice to you.

1.9 Authorization Controls for Services. You are responsible for controlling access to the Services and for any limitations placed by you on the Services that may be used by other persons. The fact that we are or may be made aware of, or could have discovered, any limitation on access to a Service does not make us obligated to enforce or attempt to enforce any limitation. You understand that persons may utilize System Services (including inquiries, transfer Requests and Account verifications) without regard to any restrictions otherwise applicable to an Account. For example, if a person directs transfers from a given Account, that person can initiate the transfers whether or not he has been authorized to do so according to the signature card applicable to the Account. If a person has signing authority over Account “A” but not over Account “B,” but has access to Treasury Management Services for these Accounts, he or she could transfer funds from “B” to “A” and then withdraw funds from “A.” You agree that any arrangements with us to require one or more authorized signatures for transactions involving your Accounts do not apply to, or limit, our obligation to act upon transfer Requests received through the System. Electronic banking services may require that you designate an individual and, where applicable, we recommend that you have at least two individuals who are authorized to take control of the security procedures inherent in Business Online Banking Services. The individual(s) who execute the Master Agreement are conclusively presumed to be the Designated Company Contacts (“DCC”). The DCC(s) are authorized to approve and submit enrollment information and any related System documents. The DCC(s) are, or can assign to one or more other persons, the role of System Administrator and you acknowledge that the Bank does not control (and may not even be aware of) changes in the System Administrator unless we receive written notice from you. It is the System Administrator’s responsibility to understand the security capabilities built into the System and to decide which of your Accounts to link to each access ID and what level of activity is appropriate for each Account linked to the access ID. The System Administrator must keep in mind the importance of separation of duties as an important way of protecting your company. Error, negligence or misfeasance by the System Administrator or by any user of the System can cause significant losses for which you agree you will be responsible; you agree to maintain insurance in appropriate form and amount to protect you against this risk. Unless you specify otherwise, all persons with access to the System will have the ability to transfer funds.

1.10 Compliance with Security Procedures/Protection of the Services. You assume all risks associated with disclosure or discovery of any password to or by your employees or others. You agree to limit disclosures of your passwords to those who you authorize or who have a specific need to know and who have been authorized by you to use the Business Online Banking Services. You will establish procedures to protect the confidentiality of all information relating to the Services, including all passwords, and will promptly notify us if you know or suspect that codes, passwords or other security information is stolen, compromised, or misused. You will require authorized persons to create new passwords at reasonably frequent periods, based on your assessment of the security requirements appropriate for the System Services utilized by you. You agree to promptly remove an employee’s password from the System and to promptly notify Hanmi Bank whenever an authorized employee leaves your employment or otherwise is no longer authorized to use the System on your behalf. You agree that we will not be responsible for verifying whether someone other than you, originates a Transfer Request or other communication through the verification process contained in the security procedures of the System. Thus, when a person is added or deleted by you as a user of Business Online Banking Services, we will treat that person as “authorized”. If we receive a transfer Request or other communication in accordance with the security procedures by this “authorized” person, we will proceed without otherwise verifying the person’s status with you, independently investigating whether the person is exercising authority granted by you, or whether the person is acting consistently with any limitations imposed by you on that person.

1.11 Your Obligation to Review Security Procedures. You will review and implement all security procedures available in connection with the System Services. After this review, you will notify us if your use of the System Services would necessitate or be better served by a level of security that exceeds that offered by the System. If you fail so to notify us, you acknowledge and agree that the security aspects of the System Services are appropriate for your needs and will provide you with a commercially reasonable degree of security against unauthorized use. Data transferred via the System is encrypted in an effort to provide transmission security. Notwithstanding our efforts to insure that the System is secure, you acknowledge that the Internet is inherently insecure and that all data transfers (including transfer Requests and electronic mail) occur openly on the Internet. This means that the data transfers can be potentially monitored and read by others. We cannot and do not warrant that all data transfers utilizing the System will not be monitored or read by others. We will not send, and strongly suggest that you do not send, any confidential information unless using the electronic communication options provided in our Customer Service section.

1.12 Fees and Charges. You agree to pay our fees and charges for your use of Business Online Banking Services, as we set them from time to time. You agree that fees and charges may be deducted from any of the Accounts maintained by you at Bank or any other account of yours. You agree to pay any additional charges for Bank services you request, which are not covered by this Agreement. You are also responsible for telephone, internet service and any other third party fees you incur in connection with your use of the System. Hanmi Bank may modify any fees or charges at any time and from time to time. We will provide you with notice of any changed fees or charges, normally thirty (30) days in advance of the effective date of the change. For current schedule of fees, please refer to the Treasury Management Service Fee Schedule (Exhibit D).

1.13 Processing Transfers. Transfers between your Accounts completed through the System before 5:00 p.m. on a Business day are posted to your Account the same day. Transfers completed after 5:00 p.m. on a Business day, or on a non-Business day, will be posted on the next Business day. Depending on the type of loan, transfers to make a loan payment, or transfers of money from a business line of credit, also need to be completed before 5:00 p.m. on a Business day to be posted to your Account the same day. Transfers completed after 5:00 p.m. on a Business day, or on a non-Business day will be posted on the next Business day. Wire transfers and origination of ACH transactions are subject to specific cutoff times for same day processing. ACH transactions and files must be received by the deadline defined in Schedule A of the ACH Origination Agreement.

1.14 Overdrafts (Order of Payments, Transfers, and other Withdrawals). If your Account has insufficient funds to perform all electronic fund transfers you have requested for a given Business day, then:

(i) Electronic funds transfers involving currency disbursements will have priority;

(ii) Electronic funds transfers initiated through the System which would result in an overdraft of your account may, at our discretion, be canceled; and

(iii) In the event the electronic fund transfers initiated through the System which would result in an overdraft of your Account are not canceled, overdraft charges may be assessed, pursuant to the terms of the Deposit Account Agreement for that Account.

1.15 Limits on System Transactions; Security Interest in Accounts. Federal regulations limit the number of certain types of transfers from our Money Market or Business Savings Accounts. You are limited to six pre-authorized electronic fund transfers and telephone transfers (including System transactions, checks and point-of-sale transactions) per month. Each fund transfer or payment through the System from your Savings or Money Market Account is counted as one of the transfers you are permitted each month from that Account. Demand deposit accounts are not subject to these transfer limitations. All transfers between Accounts or to third parties are subject to there being sufficient available funds to cover the amount of the Request in the affected Account. We may condition processing any transfer or Request, including any ACH credit entry or debit reversal entry, on availability of sufficient funds to cover the transaction. You agree to pay us in immediately available funds any amounts due to us as a result of our processing any funds transfer Request or ACH entry for you. If we allow a transfer to be processed against insufficient funds, we are not obligated to continue that practice. We may from time to time impose lower limits on the amount of any funds transfer Requests or on any ACH credit or debit entries and their files, or require funding in advance of actual processing. We will communicate these limits to you if they are imposed. You grant us a security interest in all Accounts or other deposits of yours at the Bank, and in all funds in such Accounts or other deposits, to secure your obligations to us under this Agreement or the Master Agreement. This security interest will survive termination of this Agreement or the Master Agreement. We may hold any funds on deposit with us by you after termination of this Agreement for up to ninety (90) days following the expiration of any return or chargeback rights regarding any Request or ACH entry processed by us under this Agreement or, if later, until any other claims to such funds have expired.

1.16 Disclosure of Account Information and Transfers. You understand that information about your Accounts or the transfers you make may be disclosed to others. For example, we may disclose personal information to third parties:

(i) If we have entered into an agreement with another party to provide any of the Services;

(ii) If it is necessary for completing transfers or otherwise carrying out your instructions;

(iii) If it is necessary to verify the existence and condition of an Account for a third party;
(iv) In order to comply with laws, government agency rules or orders, court orders, subpoenas or other legal process or in order to give information to any government agency or official having legal authority to request such information; or
(v) If you otherwise give us your specific permission.

1.17 Periodic Statements. You will get a monthly Account statement. Banking transactions you make using the System will not appear on a separate statement. Transfers to and from your Accounts using the System will appear on the respective periodic statements for your Accounts.

1.18 Change in Terms. We may change any term of this Agreement at any time and from time to time. If the change would result in increased fees for any System Service, increased liability for you, fewer types of available electronic fund transfers, or stricter limitations on the frequency or dollar amount of transfers, we agree to give you notice before the effective date of any such change if required by law, unless an immediate change is necessary to maintain the security of an Account or our electronic fund transfer system. If advance notice of the change is not required, and disclosure does not jeopardize the security of the Account or our electronic fund transfer system, we will notify you of the change in terms within thirty (30) days after the change becomes effective. Your continued use of any or all of the System Services indicates your acceptance of the change in terms. We reserve the right to waive, reduce or reverse charges or fees in individual situations. You acknowledge and agree that changes to fees applicable to specific Accounts are governed by the applicable Deposit Account Agreements and disclosures.

1.19 Your Right to Terminate. You may cancel your System Service at any time by providing us with written notice. Your access to the System will be suspended within three (3) Business days of our receipt of your instructions to cancel the Service. You will remain responsible for all transactions that occur prior to termination, whether termination by you or by us, and for any fees and charges incurred prior to the date of cancellation.

1.20 Our Right to Terminate. You agree that we can terminate or limit your access to the System Services for any of the following reasons:
(i) Without prior notice, if you have insufficient funds in any one of your Accounts or breach any term of this Agreement. System Service may be reinstated, in our sole discretion, once sufficient funds are available to cover any fees, pending transfers, and debits.
(ii) Upon reasonable notice (including immediate), for cause (including the foregoing) or without cause, in our sole discretion.

1.21 Communications between Bank and You. Unless this Agreement provides otherwise, each of us agrees that electronic means may be used to conduct transactions and that electronic records will satisfy any written notice requirements. You can write to us at Hanmi Bank, Treasury Management Department, 3660 Wilshire Blvd. Suite 1000, Los Angeles, CA 90010. We may write to you at the most current address shown on the records. Please note that we may not immediately receive an e-mail you send. Therefore, you should not rely on e-mail when you need to communicate with us immediately (e.g., to report unauthorized transactions on your account). E-mail may not be used to request account information or to conduct transactions with us, such as loan transfers. Requests sent to the Bank are not considered to be effective until Bank has had a reasonable opportunity to act on the request.

1.22 Miscellaneous. This Agreement, the Master Agreement, and any individual Service Agreements for Services selected by you, constitutes the entire agreement between you and the Bank with respect to the Business Online Banking System. There are no understandings or agreements relative hereto which are not fully expressed herein. The terms and conditions of the Deposit Account Agreements and disclosures for each of your Accounts, as well as your other agreements with Bank (such as for loans or other services), continue to apply except as specifically altered by this Agreement. This Agreement shall be effective when Bank accepts and agrees to it, as evidenced by the signature of an authorized Bank officer on the Master Agreement. You represent and warrant that the Master Agreement, which incorporates this Agreement, once duly executed and delivered by both parties, will be a valid agreement enforceable against you in accordance with its terms. You agree to cooperate with Bank in all manner reasonably requested by Bank, including providing Bank with information about you and executing and delivering to Bank any documents reasonably requested by Bank to further the purposes of this Agreement. This Agreement and the Master Agreement is also subject to applicable federal laws and the laws of the State of California (except to the extent this Agreement can and does vary such rules or laws, and excluding California rules governing conflicts of law). If any provision of this Agreement and/or the Master Agreement is found to be unenforceable according to its terms, all remaining provisions will continue in full force and effect. The headings in this Agreement and the Master Agreement are for convenience or reference only and will not govern the interpretation of the provisions. Any waiver (express or implied) by either party of any default or breach of this Agreement and/or the Master Agreement must be in writing and shall not constitute a waiver of any other or subsequent default or breach. You may not assign this Agreement and/or the Master Agreement without the express written consent of the Bank. This Agreement is binding upon your heirs, successors and assigns. Any of your obligations pursuant to this Agreement and/or the Master Agreement that by their nature would continue beyond the termination, cancellation or expiration of this Agreement and/or the Master Agreement shall survive termination, cancellation or expiration of this Agreement and/or the Master Agreement.

1.23 Your Duty to Notify Bank of Error. If you fail to notify us within sixty (60) days after you receive notice (whether by paper statement or electronic statement) of an unauthorized or erroneous transfer or transaction, you will be precluded from asserting any lack of authorization or any error against us.

1.24 Confidential Information. Hanmi Bank acknowledges that it may obtain or have access to non-public personal information regarding Company or its customers, and agrees to (i) maintain the confidentiality, integrity and security of such information, (ii) use such information only for the purposes set forth in this Agreement, the Master Agreement, and the Account Agreement, including without limitation for the performance of its obligations and exercise of its rights hereunder, (iii) disclose such information only to its employees, agents, auditors, accountants, attorneys and regulators, and only as necessary to perform its obligations and exercise its rights hereunder, or as otherwise permitted by law, and (iv) maintain physical, technical, procedural and administrative controls and safeguards reasonably designed (taking into account the nature and circumstances of Hanmi Bank's business) to ensure the security, integrity and confidentiality of such information, and to protect against any anticipated threats or hazards to the security or integrity of, or unauthorized access to, such information. Company acknowledges that it will have access to certain confidential information regarding Bank's execution of Entries, the Security Procedures and the services contemplated by this Agreement. Company shall not disclose any such confidential information of Bank and shall use such confidential information only in connection with the transactions contemplated by this Agreement.

1.25 Indemnification. Company will indemnify and hold harmless Hanmi Bank, its licensors and providers of the Program and Services, and their respective directors, officers, shareholders, employees and agents, against any and all third party suits, proceedings, claims, demands, causes of action, damages, expenses (including reasonable attorneys' fees and other legal expenses), liabilities and other losses resulting from (i) the wrongful acts or omissions of Company, or any person acting on Company's behalf, arising in connection with Company's use of the Program or processing of Checks hereunder, including without limitation (a) a breach by Company of any provision, representation or warranty of this Agreement, (b) the negligence or willful misconduct (whether by act or omission) of Company, its customers, or any third party on behalf of Company, (c) any modifications or changes to the Software made by Company or any third party within the control or on behalf of Company, (d) any misuse of the Program by Company or any third party within the control or on behalf of Company, or (e) the failure by Company to comply with applicable state and federal laws and regulations; (ii) any act or omission of Hanmi Bank that is in accordance with this Agreement or instructions from Company; (iii) actions by third parties, such as the introduction of a virus, that delay, alter or corrupt the transmission of an Electronic Item to Hanmi Bank; or (iv) any claim by any recipient of a Substitute Check or Electronic Item corresponding to a Check processed by Company hereunder, that such recipient incurred loss due to the receipt of the Substitute Check or Electronic Item instead of the Original Check. Company will also indemnify, defend and hold Bank harmless from against any and all loss, liability, cost, charges or other expenses (including reasonable attorneys' fees), which Bank may incur or be subject to, arising out of or related directly or indirectly to any breach by Company of its obligations under this Agreement.

1.26 Limitation on Liability. As a condition precedent to any liability of ours, you must notify us in writing of any alleged negligence or breach of this Agreement by us as promptly as reasonably possible, but in no event later than five (5) Business days following the day on which such alleged negligence or breach was, or could reasonably have been, discovered by you. Our entire liability and your sole remedy under this Agreement, whether or not the claim is in contract or tort, will not exceed an amount of the fees charged by us to you for your use of the Services during the three (3) month period preceding the date of the alleged negligence or breach. Except as set forth herein, we will not be liable or have any responsibility of any kind or any loss or damage thereby incurred by you as a result, directly or indirectly, of any unauthorized person gaining access to, or otherwise making use of, the Program. We cannot and do not warrant that the System will operate without errors, or that any or all System Services will be available and operational at all times. In no event will bank be liable for special, general, consequential, incidental, exemplary or similar damages, even if bank has been advised of the possibility thereof. Bank makes no warranties, express or implied, including but not limited to the implied warranties of merchantability and fitness for a particular purpose, or any warranty of non-infringement of third party patent or other proprietary rights. This paragraph will survive the termination of this agreement by either party, and also limits the liability of any agent, employee or affiliate of bank.

1.27 Compliance with Laws. Company shall comply with all laws, rules, and regulations applicable to Company, to the business and operation of Company, and to the Services, including, without limitation, Regulation CC, the Uniform Commercial Code and any rules established by an image exchange network through which Image Exchange Items are processed pursuant to this Agreement. Company shall have the responsibility to fulfill any compliance requirement or obligation that Bank and/or Company may have with respect to the Service under all applicable U.S. federal and state laws, regulations, rulings, including sanction laws administered by the Office of Foreign Assets Control ("OFAC"), and other requirements relating to anti-money laundering, including but not limited to, the federal Bank Secrecy Act, the USA PATRIOT Act and any regulations of the U.S. Treasury Department to implement such Acts, as amended from time to time.

1.28 Governing Law. This Agreement shall be governed by the laws of the state of California without reference to its conflicts of law provisions. Each party irrevocably submits to the exclusive jurisdiction of the courts of the State of California and the United States District Court located in the County of Los Angeles. Each party waives, to the fullest extent permitted by applicable law, any right it may have to a trial by jury in respect of any suit, action or proceeding relating to this Agreement.

2. ELECTRONIC CHECK PROCESSING "REMOTE DEPOSIT CAPTURE" AGREEMENT

In exchange for good and valuable consideration, the sufficiency and receipt of which are hereby acknowledged, Hanmi Bank and Company agree as follows with regard to the Electronic Check Processing "Remote Deposit Capture" services:

2.1 Background. Hanmi Bank offers a Remote Deposit Capture Program (the "Program") for the electronic clearing of checks, which enables Company to convert checks to electronic items and to transmit those items electronically for deposit into Company's Account at Hanmi Bank. Company desires to use the Program to electronically transmit and process checks for deposit and collection purposes.

2.2 Services. Hanmi Bank shall provide to Company the Services described in this Agreement to enable Company to use the Program to convert Checks to Electronic Items for the processing of such Checks by Hanmi Bank as Substitute Checks or Image Exchange Items. Company and Hanmi Bank shall comply with the terms and provisions of Exhibit B with respect to performance of the Services.

2.3 License. Subject to the terms and conditions of this Agreement, Hanmi Bank hereby grants Company a non-exclusive, non-transferable license to: (i) use the Software for those portions of the Program selected by Company, solely for processing Checks in connection with Company's own business operations, in accordance with the Documentation and solely on Authorized Equipment; (ii) copy and use the Documentation solely to support Company's authorized use of the Software; and (iii) copy any Software actually delivered to Company solely for archival or backup purposes. Company agrees to abide by the provisions of Exhibit C with respect to the Software and Documentation.

2.4 Company Obligations. Company represents and warrants that with respect to each Check processed by Company hereunder and the corresponding Electronic Item: (i) the Electronic Item is a digitized image of the front and back of the Check and accurately represents all of the information on the front and back of the Check as of the time Company converted the Check to an Electronic Item; (ii) the Electronic Item contains all endorsements applied by parties that previously handled the Check in any form for forward collection or return; (iii) the Electronic items are within the allowable transaction limits stated in each Account agreement, and the check cashing account agreement; and (iv) all transfer and presentment warranties made under applicable law and the Account Agreement. Company shall not process previously truncated and/or reconverted substitute check.

2.5 Fees: Company will pay Hanmi Bank the license and service fees as set forth in Hanmi Bank's schedule of fees. Hanmi Bank reserves the right to change fees from time to time upon thirty (30) days prior written notice. For current schedule of fees, please refer to the Treasury Management Service Fee Schedule (Exhibit D). Company shall be responsible for and pay all sales and other taxes applicable to this Agreement and imposed by any governmental authority, including without limitation any sales, use, and other taxes associated with the Program or Authorized Equipment, except income taxes of Hanmi Bank, including all applicable excise, property, value-added, sales or use, or similar taxes, any withholding taxes, national pension or other welfare taxes, customs, import, export, or other duties, levies, tariffs, taxes, or other similar charges. Hanmi Bank may charge to the Account all fees and taxes imposed on Hanmi Bank that are the responsibility of Company.

2.5.1 Scanner Equipment Fees: Company may purchase a scanner through Hanmi by paying for the equipment in full or over 12-month installment payments. If Service is cancelled before the scanner is paid in full, Company may return the scanner in good condition to any Hanmi branch within thirty calendar days of termination of the service; and Company will not be reimbursed for any of the installment payments made. If Company wishes to retain the scanner, the remaining balance will be deducted from their checking account.

2.6 Compliance with Laws. Company shall comply with all laws, rules, and regulations applicable to Company, to the business and operations of Company, and to the Services, including, without limitation, Regulation CC, the Uniform Commercial Code and any rules established by an image exchange network through which Image Exchange Items are processed pursuant to this Agreement. Company shall have the responsibility to fulfill any compliance requirement or obligation that Bank and/or Company may have with respect to the Service under all applicable U.S. federal and state laws, regulations, rulings, including sanction laws administered by the Office of Foreign Assets Control ("OFAC"), and other requirements relating to anti-money laundering, including but not limited to, the federal Bank Secrecy Act, the USA PATRIOT Act and any regulations of the U.S. Treasury Department to implement such Acts, as amended from time to time.

2.7 Term and Termination. The term of this Agreement will commence upon full execution of the Master Agreement and will continue thereafter until terminated as follows:

(i) Company may terminate this Agreement at any time, with or without cause, upon thirty (30) days prior written notice to Bank; and
(ii) Bank may terminate this Agreement at any time immediately upon notice to Company.

2.7.1 Any termination will not affect obligations arising prior to termination, such as the obligation to process any Checks and Electronic Items, including returned Electronic Items that were in the process of being transmitted or collected prior to the termination date. Within thirty (30) days after termination of this Agreement or the Master Agreement, Company will return or destroy all copies of the Software and Documentation in its possession or under its control, and will, upon request, certify in writing that it has returned or destroyed all such copies. In addition, Company will keep its Account at Hanmi Bank open until the later of (i) sixty (60) days after the date of termination, or (ii) final payment with respect to all processing fees, and will keep in such Account an amount sufficient to cover any remaining outstanding checks. If any such outstanding checks or returned items exceed the amount in the Account, Company will pay such excess to Hanmi Bank upon demand. Company will also continue to retain Checks and forward Checks to Hanmi Bank as provided in Exhibit B of this Agreement. Company agrees not to develop a product substantially similar to the Program during the term hereof or within three (3) years after termination of this Agreement or the Master Agreement.

2.7.2 All Sections of this Agreement which are intended by their terms to survive the termination of this Agreement, including without limitation Sections 2.5, 2.8, 2.9, 2.10, 2.11, 2.12, 2.14, 2.15, 2.17, 2.19 and 2.21, will survive any termination of this Agreement.

2.8 Limitation of Liability. Hanmi Bank will not be liable to Company for any of the following, unless liability or loss is a result of Hanmi Bank's breach of this Agreement or the gross negligence or willful misconduct of Hanmi Bank or its employees or agents: (i) any damages, costs or other consequences caused by or related to Hanmi Bank's actions that are based on information or instructions that Company provides to Hanmi Bank; (ii) any unauthorized actions initiated or caused by Company or its employees or agents; (iii) the failure of third persons or vendors to perform satisfactorily, other than persons to whom Hanmi Bank has delegated the performance of specific obligations provided in this Agreement; (iv) any refusal of a Payor Financial Institution to pay an Electronic Item or Substitute Check for any reason (other than the breach of contract, negligence or willful misconduct of Hanmi Bank), including without limitation that the Check, Electronic Item or Substitute Check was allegedly unauthorized, was a counterfeit, had been altered, or had a forged signature; (v) any other party's lack of access to the Internet or inability to transmit or receive data; (vi) failures or errors on the part of Internet service providers, telecommunications providers or any other party's own internal systems, or (vii) any of the matters described in Section 2.7 above.

2.8.1 Hanmi Bank's liability for errors or omissions with respect to the data transmitted or printed by Hanmi Bank will be limited to correcting the errors or omissions. Correction will be limited to reprinting and/or representing Substitute Checks or Electronic Items to the Payor Financial Institution.

2.8.2 Notwithstanding anything to the contrary in this agreement, Hanmi Bank's aggregate liability to company for claims relating to this agreement or program, whether for breach, negligence, infringement, in tort or otherwise, and arising during any three-month period shall be limited to an amount equal to the total fees paid by company to Hanmi Bank for such three-month period for the use of the program.

2.8.3 In no event will either party be liable for any consequential, indirect, incidental, special or punitive damages, or any lost profits or loss of any opportunity or good will, even if such party has been advised of the possibility of such damages.

2.8.4 Hanmi Bank and company acknowledge and agree that the limitations of liability in this section are a bargained for allocation of risk and liability, and agree to respect such allocation of risk and liability. Each party acknowledges and agrees that the other party would not enter into this agreement without the limitations of liability set forth in this section.

2.8.5 Hanmi Bank's representations, warranties, obligations and liabilities, and company's rights and remedies, set forth in this agreement are exclusive. The software is provided by Hanmi bank and its licensors "as is". Hanmi bank and its licensors and company hereby waives and releases Hanmi bank and its licensors and their respective owners, officers, and employees from, all other representations, warranties of any nature, obligations, and liabilities, whether express or implied, arising by law or otherwise, with respect to the software, documentation, authorized equipment and any and all matters arising under or in connection with this agreement, including without limitation: (i) any implied warranty of merchantability, fitness for a particular use, purpose or application, or other implied contractual warranty; (ii) any implied warranty arising from course of performance, course of dealing, or usage of trade; (iii) any warranties of timeliness or non-infringement; and (iv) any other warranty with respect to quality, accuracy or freedom from error. Without limiting the generality of the foregoing, neither Hanmi bank nor its licensors warrant that operation of the software or the authorized equipment will be error-free or uninterrupted.

2.9 Amendments. Hanmi Bank may (i) amend the provisions of this Agreement that govern the procedures and functions of the Program, and any such amendment will become effective (a) thirty (30) days after Company's receipt of notification, (b) upon such later date as may be specified in such notification, or (c) at such earlier date as Hanmi Bank may reasonably require if such amendment is necessary or advisable in connection with statutory or regulatory changes or to protect the integrity, security or operability of the Program; and (ii) amend this Agreement as otherwise provided herein. No other amendment to this Agreement shall be effective until signed by both parties to this Agreement.

2.10 Applicable Law and Jurisdiction. This Agreement will be governed by and construed in accordance with the laws of the state of California, excluding its conflict of law principles. The parties shall submit to the venue and jurisdiction of the courts as provided in the Account Agreement.

2.11 Arbitration. Any dispute, controversy or claim arising out of or based upon the terms of this Agreement or the Master Agreement or the transactions contemplated hereby shall be resolved by arbitration pursuant to the terms of the Account Agreement; provided, however, that any dispute, controversy or claim relating to intellectual property rights with respect to the Software or Documentation shall not be subject to resolution by arbitration.

2.12 Assignment. Neither party may assign its rights or delegate its duties under this Agreement without the other party's prior written consent, which will not be unreasonably withheld or delayed. Notwithstanding the foregoing, Hanmi Bank may assign this Agreement or the Master Agreement to an affiliate or subsidiary without Company's prior consent, provided that Hanmi Bank remains primarily liable for the performance of its obligations under this Agreement. Any attempted assignment or delegation without the required consent will be void.

2.13 Attorney's Fees. If any action is brought by either party against the other regarding the subject matter of this Agreement, including any court action or arbitration proceeding, the prevailing party shall be entitled to recover, in addition to any relief granted, reasonable attorney's fees, costs of court, expert witness fees and other expenses of action.

2.14 Compliance with Laws. Each party will comply with all applicable federal, state and local laws and regulations with respect to this Agreement and such party's activities covered by or related to this Agreement.

2.15 Construction and Interpretation. Section headings used herein are for the convenience of reference only, and shall not affect the meaning or interpretation of this Agreement. This Agreement shall be deemed to have been drafted by both parties, and in the event of dispute, no party shall be entitled to claim that any provision hereof should be construed against the other party by reason of the fact that it was drafted by any particular party. The failure of either party to enforce any rights granted under this Agreement or to take action against the other party in the event of any breach shall not be considered a waiver of that right or breach unless the waiver has been reduced to writing and signed by the waiving party. If a party effectively waives a right or breach, that waiver will not constitute a waiver of any other right or breach or of a subsequent breach of the same obligation. If any provision of this Agreement is held invalid, illegal or unenforceable in any particular jurisdiction or circumstance, the remaining provisions of this Agreement shall remain valid and enforceable in such jurisdiction or circumstance, and such provision shall remain valid and enforceable in any other jurisdiction or circumstance.

2.16 Entire Agreement. This Agreement supplements the Master Agreement and the terms of the Account Agreement. This Agreement, the Exhibits and schedules to this Agreement (as may be amended from time to time), the Master Agreement, and the Account Agreement constitute the entire agreement between Company and Hanmi Bank with respect to the Program, and supersede any prior agreements between Hanmi Bank and Company with respect to the subject matter hereof, and shall be binding upon Hanmi Bank, Company and their respective successors and permissible assigns. In the event of any inconsistency between this Agreement and the Documentation or any Account Agreement with respect to the Program, this Agreement will govern.

2.17 Force Majeure. Except for the obligation to make payments, nonperformance by either party will be excused to the extent performance is prevented or delayed due to causes beyond such party's reasonable control and without its negligent or willful misconduct, including without limitation acts of God, natural disasters, terrorist acts, war or other hostilities, labor disputes, civil disturbances, governmental acts, orders or regulations, third party nonperformance or failures or fluctuations in electrical power, heat, light, air conditioning or telecommunications equipment.

2.18 Injunctive Relief. Notwithstanding Section 2.15 of this Agreement, each party acknowledges that its violation of Sections 2.4, 2.9 or 2.18 of this Agreement may cause irreparable injury to the other party, and agrees that the other party shall be entitled to seek temporary and preliminary injunctive relief in a court of competent jurisdiction, without the necessity of proving actual damages or posting a bond, to prevent such violation.

2.19 Notices. All notices permitted or required under this Agreement will be in writing and will be deemed given upon actual delivery. Any notice will be addressed to the party as follows:

If to Hanmi Bank:

Hanmi Bank
Treasury Management Department
3660 Wilshire Blvd., Suite. PH-A
Los Angeles, CA 90010
Phone Number: (844) 464-2664
Fax Number: (213) 427-5650

If to Company: The contact information set forth in the Master Agreement.

2.20 Relationship between Parties. This Agreement will not be construed as creating an agency, partnership, joint venture, or any other form of association, for tax purposes or otherwise, between the parties, and the parties will at all times be and remain independent contractors. Except as expressly agreed by the parties in writing, neither party will have any right or authority, express or implied, to assume or create any obligation of any kind, or to make any representation or warranty, on behalf of the other party or to bind the other party in any respect whatsoever.

2.21 Third Party Beneficiaries. This Agreement is for the sole and exclusive benefit of Hanmi Bank and Company and is not intended to benefit any third party, except Hanmi Bank's licensors. Company and Hanmi Bank acknowledge and agree that any party that licenses the Software to Hanmi Bank, directly or indirectly through one or more sub licensees, is a third party beneficiary to this Agreement with respect to those provisions dealing with use and protection of intellectual property.

3. POSITIVE PAY AGREEMENT

WHEREAS, Company has requested that Bank provide certain positive pay services to assist in mitigating risk for checks paid and/or ACH debit items (the "Service");

WHEREAS, Bank wishes to honor Company's request for positive pay services as provided in this Agreement;

NOW, THEREFORE, Bank and Company agree as follows:

3.1 Positive Pay. Hanmi Bank's Positive Pay Services are designed to help you identify and resolve suspect check activity in a timely manner.

3.2 Checking Account. Company will maintain a Demand Deposit Account with Bank ("DDA Account"), subject to the terms and conditions of the applicable Deposit Account Agreement. On or before the business day that you issue checks on your designated DDA Account, you will provide us with a data file giving the issue date, number and amount of each such check ("Issue Input"). A "business day" is a day on which Bank is open to the public for carrying on substantially all of its business other than a Saturday or Sunday. Your Issue Input must be provided to us in accordance with the instructions in the User Documentation for Service, which shall be provided separately to you. If you issue a check and deliver it to the payee for payment on the same day, you must immediately notify us of the number and amount of such check. Your Issue Input may be provided to us through our Hanmi Bank Online Banking service or by SFTP.

3.3 Processing. Each business day, we electronically match the serial number and dollar amount of each check that posts to your designated DDA Account (individually "Item" and collectively "Items") against the Issue Input provided by you. If an Item matches your Issue Input, we will pay the Item. If an Item does not match your Issue Input, we will identify the Item as an "Exception Item" and report it to you via an "Exception Report."

(i) Your Exception Report is only available to you through our Hanmi Bank Online Banking service. To receive your Exception Report you must enroll in the Positive Pay Module of the Hanmi Bank Online Banking service.

(ii) Each business day you must promptly review the Exception Report provided for that day. You must assign a "Pay" or "Return" decision to each Exception Item; and return the Exception Report with your decisions to us for processing before our standard cut-off time.

(iii) If an Exception Item is not assigned a "Pay" or "Return" decision, or if we do not receive a completed Exception Report from you in accordance with instructions in the User Documentation for this Service by our standard cut-off time, the Exception Item(s) will be returned to the presenting bank with the reason "Refer to Maker".

(iv) Should any check listed on your Issue Input be presented for payment against your designated DDA Account at a Bank branch office, our tellers will utilize your Issue Input information to verify that you have issued the check. If the check matches your Issue Input information and meets our usual check cashing requirements, it may be cashed in accordance with our usual procedures. If the check does not match your Issue Input information, we will attempt through reasonable means to contact you for authorization to pay the check. If you cannot be contacted, or you do not authorize payment of the check, the check will not be cashed and will be returned to the presenter with the reason "Refer to Maker".

3.4 Payee Verify. This feature enhances the Service by additionally comparing the payee name from the check against the payee name on the Issue Input. As part of Issue Input, you will need to include payee name information. When checks are presented for payment, in additional to comparing the check number, and amount, we verify the payee name on the check to the payee name provided on the Issue Input.

(i) In the event we are unable to perform the payee verify process on any given day for the checks that post to your designated DDA Account, the Payee Verify feature will revert to the standard Service for that day.

(ii) If you are unable to or fail to provide your issue Input with Payee Information in accordance with the instructions in the User Documentation for this service, we reserve the right to remove you from the Payee Verify feature of the Service.

(iii) If you advise us of checks issued for payment as stated above or instruct us to pay a check or an Item or Exception Item and based on the advice or instruction we pay the check, Item or Exception Item, we shall have no liability or responsibility to you if the check, Item or Exception Item so paid bears a forged or unauthorized maker's signature, has no signature, is altered in any way, is incomplete, or is otherwise irregular.

(iv) By transmitting an Issue Input with Payee Information or other Issue Input to us, you warrant that all checks that match the information on the Issue Input were properly issued by you and we shall have no further responsibility or liability for examination of the checks for fraudulent signatures or material alterations. We shall be entitled to rely and act upon any advice or instruction given to us by you in accordance with the Service without further inquiry if the advice or instruction is given to us in the form and manner and within the time as we shall require. We shall not be obligated to pay any check or Item or Exception Item which you advise or instruct be paid if you do not have on deposit in the DDA Account on which the check or Item or Exception Item is drawn at the time of presentment, good and sufficient collected funds to enable us to pay the Item or Exception Item without overdrawing the DDA Account. You will not use the Service to pay your obligations on a delayed basis or in place of a stop payment order on any check, Item or Exception Item which you know before its presentment you do not want to have us pay. You acknowledge that your failure to use the Service with Payee Verify could substantially increase the likelihood of undetected fraudulent activity on your account and that is it neither manifestly unreasonable nor unreasonable under the circumstances for us to require you to use the Service with Payee Verify feature upon request. You agree that if you fail to implement the Service with Payee Verify following our request that you do so, you will be precluded from asserting any claim against us for paying an unauthorized, altered, counterfeit, or other fraudulent item that the Service with Payee Verify was designed to detect or deter, and we will not be required to re-credit your account or otherwise be liable to you for paying such item.

3.5 Fees. Company authorizes the Bank to charge the Account for the Bank's fees incurred in connection with the Positive Pay Service. Bank reserves the right to modify the fees charged from time to time. For current schedule of fees, please refer to the Treasury Management Service Fee Schedule.

3.6 Indemnification. Company agrees to defend, release, indemnify and hold harmless Bank (and its officers, directors, agents, employees, successors and assigns) from and against any and all actions, costs, claims, demands, obligations, liabilities, indebtedness, breaches of contract, breaches of duty or any relationship, acts, omissions, nonfeasance, misfeasance, misfeasance, losses, damages or expenses, including attorneys' fees and expenses, that cause or causes actions and otherwise of every type, nature, kind or whether now or in the future existing or at any time could, might or may be claimed to exist, resulting from or arising out of any action or inaction taken by Bank under this Agreement or the Master Agreement. This paragraph expressly survives the termination of this Agreement or the services contemplated in this Agreement.

3.7 Excuses; Force Majeure. Failure by Bank or delay in its performance of any obligation, as described in this Agreement, will be excused if such failure or delay is caused by an event or circumstance beyond its reasonable control. Circumstances beyond Bank's reasonable control, include but are not limited to, legal constraints, interruption of transmission or communication facilities, equipment failure, war, emergency conditions, terrorist action or an Act of God. In such event, Company will accept such failure or delayed performance without claim for damages or compensation.

3.8 Limitation of Liability. Bank's sole responsibility to Company for an error caused by Bank in performing the Service shall be to process a correcting entry in the next regularly scheduled processing of Company's work after Bank has received timely notice of such error and had a reasonable opportunity to research and resolve the error. If Company fails to notify Bank of any error alleged to have been made by Bank, Bank shall have no obligation to Company to take any action with respect to such error. Bank's total liability to Company for damages, losses or expenses incurred as a result of any alleged direct or indirect failure to perform pursuant to this Agreement or breach of this Agreement will not exceed the payments made by Company to Bank pursuant to this Agreement during the preceding three (3) months immediately preceding the alleged failure of performance. In no event will Bank be liable for lost profits, special, indirect, incidental or consequential damages, which Company may incur or experience as a result of entering into or relying on this Agreement, even if Bank has been advised of the possibility of such damages.

3.9 Termination. Company or Bank may terminate the services contemplated in this Agreement at any time, and for any reason. Termination shall be effective (i) immediately upon notice to Company if termination by Bank; or (ii) by the fifteenth (15th) business day following the day of receipt of written notice by Bank, if termination is by Company; or (iii) such later date as may be specified in the written notice. Notwithstanding the foregoing, Bank may terminate this Agreement, without prior notice: (a) if required to do so by law, regulation or a bank regulatory authority; (b) upon Company's material breach of this Agreement or the Master Agreement; (c) if it is permitted to do so under the terms of this Agreement or under the terms of the Master Agreement between Company and Bank; (d) if the Account is closed for any reason; or (e) if Company (i) is dissolved, becomes insolvent, generally fails to pay or admits its inability to pay its debts as they become due; (ii) makes a general assignment, arrangement or composition agreement with or for the benefit of its creditors; or (iii) files a petition in bankruptcy or similar official procedure for the windup of its business (or has such a petition or action filed against it and such petition or action is not dismissed or stayed within forty-five (45) days of the filing). Termination of the services contemplated in this Agreement shall not relieve Company of any of the Company's obligations arising prior to such termination, including but not limited to any indemnification obligation that relates to action or inaction taken prior to termination.

3.10 Amendments, Modifications, Additions or Deletions. Bank will normally give advance notice of any amendment, modification, addition or deletion of this Agreement (collectively and individually, a "change"), but Bank is not required to do so except as provided by law. A change may include a change to existing terms, a change that involves new terms, and a change that involves conditions not otherwise contemplated by Company or Bank at the time this Agreement is entered. Any change will take effect immediately, unless stated otherwise in any notice Bank provides.

3.11 Use of Third Party Agent. Bank has the right to offer the Service through an affiliate or unrelated third party. In order to provide the Service to Company through this type of arrangement, Company authorizes the Bank to disclose information on Company's accounts and services to the affiliate or third party who provides the Service.

3.12 Other Agreements. The terms and conditions agreed to herein are independent of any authority given under separate account documentation, including but not limited to the account signature card, DDA Account agreement and any loan agreement where the Bank has the authority to redirect deposited funds.

3.13 Assignment. Company may not assign its interest and rights under this Agreement in whole or in part without the prior written consent of Bank. Company further agrees that Bank may assign this Agreement without the consent of Company. This Agreement shall be binding on each party's heirs, successors, and assigns.

3.14 Headings. Headings used in this Agreement are for convenience only and shall not be deemed a part of this Agreement.

3.15 Severability. If any provision of this Agreement is held to be invalid, illegal or unenforceable, the remainder of the Agreement, or other parts or applications of such provisions, shall not be affected.

3.16 Submission to Jurisdiction and Venue. Bank and Company agree that all suits, actions, or other proceedings brought in connection with Agreement are subject to the jurisdiction of any state or federal court located within the State of California, County of Los Angeles.

3.17 Applicable Law. This Agreement shall be construed in accordance with and governed by the laws of the State of California (excluding conflicts of law principles), except to the extent preempted by federal law.

3.18 Arbitration. Any claims or disputes involving or arising out of or related to this Agreement or its breach shall be subject to binding arbitration in accordance with the terms of Company's DDA Deposit Account Agreement with Bank.

3.19 No Third Party Beneficiaries. This Agreement is made for the exclusive benefit of Company and Bank. No third party has any rights under this Agreement.

3.20 Waivers. Bank may delay enforcing its rights under this Agreement without losing them. Any waiver by Bank shall not be deemed a waiver of other rights or of the same right at another time.

4. ODFI ORIGINATION AGREEMENT FOR AUTOMATED CLEARING HOUSE SERVICES

Credit Origination

WHEREAS, Bank is a Participating Depository Financial Institution ("Participating Institution") of the Western Payments Alliance ("WesPay") and may initiate electronic fund transfer entries ("Entries") by means of the Automated Clearing House ("ACH");

WHEREAS, Company desires to initiate Credit Entries through Bank for deposit of funds to the accounts of Company's customers and other parties ("Company's Customers") maintained at Bank and other Participating Institutions ("Accounts"). Such Entries may be referred to herein as "Credit Entries";

NOW, THEREFORE, Bank and Company agree as follows:

4.1 Rules. Company shall comply with the Operating Rules of WesPay and the Operating Rules of the National Automated Clearing House Association ("NACHA"), and any other applicable laws in existence as of the date of this Agreement and as amended from time to time (herein collectively referred to as the "Rules"). The terms of this Agreement shall in no way limit Company's obligation of complying with the Rules. Unless otherwise defined herein, capitalized terms shall have the meanings provided in the Rules. The term "Entries" shall have the meaning provided in the Rules and shall also mean (i) the data received from Company hereunder from which Bank prepares Entries, and (ii) for the purposes of Sections 4.8.3 and 4.8.4 any request from Company for reversal of an Entry.

4.2 Delivery of Entries to Bank.

4.2.1 Delivery Requirements. All Entries shall be delivered by Company to Bank to the location(s) and in compliance with the formatting and other requirements set forth by the Rule. The total dollar amount of Entries transmitted by Company to Bank on any one day shall not exceed the approved ACH credit limit.

4.2.2 Customer Authorizations and Record Retention. Before the initiation by Company of the first Entry to a Customer's Account, Company shall obtain from such Customer an authorization to initiate one or more Entries to the Customer's Account, which authorization shall comply with the Rules. Each Entry thereafter shall be made pursuant to such authorization, and no Entry shall be initiated by Company after such authorization has been revoked or the arrangement between Company and such Customer has terminated. Company shall retain Customer authorizations for two (2) years after they are terminated and other documents related to Entries for a period of two (2) years. Company shall immediately furnish such authorizations and documents to Bank upon Bank's request.

4.2.3 Prenotification. Company shall deliver a prenotification, in a format and in the medium set forth in ACH Credit Form and/or prescribed by the Rules to Bank to be transmitted to the Participating Institution at which the Customer's Account is held ("RDFI") within the time limits set forth in the Rules. If Company has received notice that such prenotification has been rejected within the prescribed period by the RDFI, Company shall not initiate any corresponding Entry until the cause for rejection has been corrected and another prenotification has been submitted to and accepted by the RDFI in accordance with the Rules. (NOTE: Providing a prenotification is optional. Section 4.2.4 should only be included in the Agreement if Company sends a prenotification).

4.2.4 Cancellation and Amendment of Entries; Reversals. Company shall have no right to cancel or amend an Entry after it is delivered to Bank. Bank, however, shall use reasonable efforts to act on a request by Company for reversal of an Entry file pursuant to the Rules; provided, however, that Bank shall not be liable for interest or losses if such reversal is not effected. Any request by Company for reversal of an Entry must comply with the Delivery

Requirements and the Security Procedures. Company must notify Customer of the reversal of the Entry and the reason for the reversal of the Entry no later than the Settlement date of the reversal of the Entry. Company shall reimburse Bank for any expenses, losses or damages Bank may incur in effecting or attempting to effect Company's request for the reversal of an Entry.

4.3 Processing, Transmittal and Settlement by Bank.

4.3.1 Processing, Transmittal and Settlement. Except as provided in Sections 4.4, 4.5, and 4.9, Bank shall (i) process Entries received from Company to conform with the requirements set forth in this Agreement, (ii) transmit such Entries as an Originating Depository Financial Institution to an ACH selected by Bank in its sole discretion, and (iii) settle for such Entries as provided in the Rules.

4.3.2 Timing. Bank shall transmit such Entries to the ACH by the deadline of the ACH set forth in the Master Agreement one business day prior to the Effective Entry Date shown in such Entries, provided (i) such Entries are received by Bank's related cut-off time set forth in the Master Agreement on a business day, (ii) the Effective Entry Date is at least three days after such business day, and (iii) the ACH is open for business on such business day. For purposes of this Agreement (x) a "business day" is a day on which Bank is open to the public for carrying on substantially all of its business other than a Saturday or Sunday, and (y) Entries shall be deemed received by Bank in the case of transmittal by electronic transmission, when the transmission (and compliance with any related Security Procedure) is completed as provided in the Delivery Requirements. If any of the requirements of clause (i), (ii) or (iii) of the preceding paragraph is not met, Bank shall use reasonable efforts to transmit such Entries to the ACH by the next deposit deadline of the ACH following that specified in the Master Agreement which is a business day and a day on which the ACH is open for business.

4.4 On-Us Entries. Except as provided in Section 4.5, in the case of an On-Us Entry, Bank shall Credit the Receiver's account in the amount of such Entry on the Effective Entry Date contained in such Entry, provided the requirements set forth in clauses (i) and (ii) of Section 4.3.2 are met. If either of those requirements is not met, Bank shall use reasonable efforts to Credit the Receiver's account in the amount of such Entry on the next business day following such Effective Entry Date.

4.5 Rejection of Entries. Bank may reject any Entry for any reason. Bank shall notify Company of such rejection (either electronically, in writing, by telephone, or as otherwise agreed to by Bank and Company) no later than the business day after the Effective Entry Date. Bank shall not be liable to Company for the rejection of any Entry, for Company's non-receipt of a notice given to Company, or for the failure to give notice of rejection at an earlier time than that provided for herein. Bank shall not be required to pay Company interest on a rejected Entry for the period from rejection of the Entry to Company's receipt of the notice of rejection.

4.6 Notice of Returned Entries. Bank shall notify Company either electronically, in writing, by telephone, or as otherwise agreed to by Bank and Company of the receipt of an Entry returned by the ACH no later than one (1) business day after Bank's receipt of the returned Entry. Bank shall have no obligation to take other action with respect to a returned Entry.

4.7 Provisional Payment. Company represents to Bank and agrees that it shall be bound by the provision of the Rules making payment of an Entry by the RDFI to the Receiver provisional until receipt by the RDFI of final settlement for such Entry, and specifically acknowledges that it has received notice of that Rule and of the fact that, if such settlement is not received, the RDFI shall be entitled to a refund from the Receiver of the amount Credited and Company shall not be deemed to have paid the Receiver the amount of the Entry.

4.8 Security Procedures; Unauthorized and Authorized Entries; Inconsistent Entries.

4.8.1 Purpose of Security Procedures. Company agrees that the purpose of the Security Procedures is to verify the authenticity of Entries transmitted to Bank in the name of Company and not to detect an error in the transmission or content of any Entry, and that no security procedure for the detection of such errors has been agreed upon by Bank and Company.

4.8.2 Protection of Security Procedures. Company is strictly responsible to establish and maintain procedures to safeguard against unauthorized transmissions. Company warrants that no individual will be allowed to initiate transfers in the absence of proper supervision and safeguards, and agrees to take reasonable steps to maintain the confidentiality of the Security Procedures and of any passwords, codes, security devices and related instructions provided by Bank in connection with the Security Procedures. If Company believes or suspects that any such information or instructions are known or have been accessed by unauthorized persons, Company shall notify Bank immediately.

4.8.3 Unauthorized Entries. An Entry delivered to Bank that purports to have been transmitted or authorized by Company shall be effective as Company's Entry as provided herein even if the Entry was not in fact authorized by Company, provided Bank has accepted the Entry in compliance with the Security Procedures with respect to such Entry.

4.8.4 Authorized Entries. If an Entry received by Bank was transmitted or authorized by Company, it shall be effective as the Company's Entry as provided herein, whether or not Bank complied with the Security Procedures with respect to that Entry and whether or not that Entry was erroneous in any respect or that error would have been detected if Bank had complied with such procedure.

4.8.5 Inconsistent Entries. Company acknowledges and agrees that (i) if an Entry describes the Receiver inconsistently by name and account number, payment of the Entry transmitted by Bank to an RDFI might be made by RDFI (or by Bank in the case of an On-Us Entry) on the basis of the account number even if it identifies a person different from the named Receiver, and that Company's obligations to pay the amount of the Entry to Bank is not excused in such circumstances, and (ii) if an Entry describes the RDFI inconsistently by name and identifying number, payment of the Entry might be made by RDFI on the basis of the account number even if it identifies an RDFI different from the named RDFI, and that Company's obligation to pay the amount of the entry to Bank is not excused in such circumstances.

4.9 Company Account. Company shall at all times maintain sufficient available funds in a deposit account Company shall maintain at Bank (the "Company Account") to pay the amount of all Credit Entries fees and other amounts which Company is obligated to pay Bank under this Agreement. Bank in its sole discretion may require Company to have sufficient available funds in the Company Account to cover the amount of a Credit Entry prior to Bank's transmittal of such Entry to an ACH or Bank's Crediting of a Receiver's account in the amount of an On-Us Entry. In the absence of such a requirement, Company shall be obligated to have such available funds in the Company Account at such time on the Settlement Date with respect to such Entry, or in the case of an On-Us Entry, the date of Crediting the Receiver's account, as Bank, in its discretion, may determine. Bank may, without prior notice or demand, obtain payment of any amount due and payable to it under this Agreement by Crediting the Company Account, and may Credit the Company Account for any amount to which Company is entitled under this Agreement. If there are insufficient funds available in the Company Account to pay amounts Company owes Bank under this Agreement, Company shall pay any amounts due immediately upon demand, and Company agrees that Bank may debit any account maintained by Company with Bank or that Bank may set off against any amount it owes to Company, in order to obtain payment of Company's obligations.

4.10 Company's Representations, Warranties and Indemnification. Company represents and warrants that for each Entry Company delivers to Bank that: (i) the Entry is a Credit Entry and complies with the terms of this Agreement and the Rules; (ii) Company has complied with the Rules with respect to the Entry; (iii) there has not been and shall not later be any breach of any warranty of Company as an Originator or of Bank as an ODFI under the Rules; (iv) Company has not breached any warranty contained in this Agreement; and (v) the Entry complies with all local, State and Federal laws and regulations, including but not limited to the Electronic Fund Transfer Act, Regulation E and any applicable regulations issued by the Office of Foreign Assets Control. Company shall indemnify Bank against any loss, liability or expense (including attorneys' fees and expenses) resulting from or arising out of any breach of any of the foregoing representations or warranties.

4.11 Notices and Statements. Bank is not required to and will not provide Company or Customers with notice of receipt or Bank's transmittal or Crediting of Entries. Entries and other debits and credits to the Company Account will only be reflected on the periodic statement for the Company Account. Company shall notify Bank of any unauthorized or erroneous Entries or any other discrepancy or error on the periodic statement within sixty (60) calendar days of receipt of the statement, after which the statement will be conclusively presumed to be correct. Bank shall not be liable for any interest or losses resulting from Company's failure to give such notice.

4.12 Liability of Bank; Limitations on Liability.

4.12.1 Performance of Bank. Bank shall be responsible only for performing the services it expressly agrees to perform in this Agreement, and shall be liable only for direct damages caused by its negligence in performing those services. Bank shall not be responsible for any acts or omissions of Company, including without limitation the amount, accuracy, timeliness of delivery or Customer authorization of any Entry received from Company, or any act or omission of any other person, including without limitation WesPay, any Federal Reserve Bank, any ACH or transmission or communications facility, any data processor of Company, or any Receiver or RDFI (including without limitation the return of an Entry by such Receiver or RDFI), and no such person shall be deemed Bank's agent.

4.12.2 Limit on Damages. In no event shall Bank be liable for any consequential, special, punitive, or indirect loss or damage which Company may incur or suffer in connection with this Agreement, including without limitation loss or damage from subsequent wrongful dishonor resulting from Bank's acts or omissions in performing its services under this Agreement.

4.12.3 Force Majeure. Bank shall not be responsible for any failure to act or delay in acting if such failure is caused by legal constraint, the interruption of transmission or communication facilities, computer malfunction or equipment failure, war, emergency conditions, or other circumstances beyond Bank's reasonable control. In addition, Bank shall be excused from failing to transmit or delay in transmitting an Entry if such transmittal would result in Bank's having violated any provision of any present or future risk control program of the Federal Reserve or any rule or regulation of any other governmental regulatory authority.

4.12.4 Interest. Subject to the foregoing provisions of this Section 4.12, any liability which Bank may have for loss of interest for an error or delay in performing its services hereunder shall be calculated by using a rate equal to the average Federal Funds rate of the Federal Reserve Bank of New York for the period involved, less any applicable reserve requirements.

4.13 Indemnification. Company shall defend, indemnify and hold harmless Bank, and its officers, directors, agents and employees, from and against any and all actions, costs, claims, losses, damages or expenses, including attorneys' fees and expenses, resulting from or arising out of (i) any breach of any of the agreements, representations or warranties of Company contained in this Agreement, or (ii) any act or omission of Company or any other party acting on Company's behalf, including but not limited to the parties described in Section 4.12.1 above.

4.14 Payment for Bank Services. Company shall pay Bank fees for the services provided by Bank under this Agreement in accordance with rate schedules published by Bank from time to time. For current schedule of fees, please refer to the Treasury Management Service Fee Schedule. Such charges do not include, and Company shall be responsible for payment of, any sales, use, or excise, value added, utility or other similar taxes relating to the services provided for in Company's agreement between Bank and Company with respect to the Company Account (the "Deposit Account Agreement"). Rate schedules may be changed by Bank upon thirty (30) calendar days prior notice to Company.

4.15 Termination. Bank may terminate this Agreement immediately by notice to Company, or without notice if Company breaches any of its obligations under this Agreement or the Rules. Company may terminate this Agreement by written notice to Bank at any time. As noted in the Master Agreement, your access to the System will be suspended within three (3) Business days of our receipt of your instructions to cancel the Service. Company will remain responsible for all transactions that occur prior to termination, whether termination by Company or by Bank, and for any fees and charges incurred prior to the date of cancellation. Termination shall not affect any of Bank's rights or Company's obligations under Sections 4.2.3, 4.10, 4.12, and 4.13 above or related to Entries initiated by Company prior to such termination. Bank may hold any funds on deposit with Bank by Company after termination of this Agreement for up to ninety (90) days following the expiration of any return or chargeback rights regarding any Request or ACH entry processed by Bank under this Agreement or, if later, until any other claims to such funds have expired.

4.16 Tapes and Records. All magnetic tapes, Entries, Security Procedures and records used by Bank for transactions contemplated by this Agreement shall be and remain Bank's property. Bank may, in its sole discretion, make available such information upon Company's request. Any expenses incurred by Bank in making any such information available to Company shall be paid by Company.

4.17 Fees. Company agrees to pay the fees for originating ACH Credit service per transfer AND per transaction as listed in the TMS Fee Schedule in the attached Schedule D. Bank may deduct the fees from any account of Company at the Bank. The Bank may change the fees charged to the Company anytime during the term of this agreement. Bank may adjust these fees from time to time and will provide notice as dictated by the Master Agreement.

4.18 General Provisions.

4.18.1 Entire Agreement. This Agreement and the Master Agreement to which it is incorporated, including any other individual Service Agreements, and the applicable Deposit Account Agreement constitutes the entire agreement between Bank and Company. In the event of any inconsistency between the terms of this Agreement and the Deposit Account Agreement with respect to the ACH Services contemplated herein, the terms of this Agreement shall govern. In the event performance of the services provided herein in accordance with the terms of this Agreement would result in a violation of any present or future statute, regulation or government policy to which Bank is subject, and which governs or affects the transactions contemplated by this Agreement, then this Agreement shall be deemed amended to the extent necessary to comply with such statute, regulation or policy, and Bank shall incur no liability to Company as a result of such violation or amendment. No course of dealing between Bank and Company or usage of trade shall constitute a modification of this Agreement, the Rules or the Security Procedures or constitute an agreement between Bank and Company regardless of whatever practices or procedures Bank or Company may use.

4.18.2 Amendment. Except as provided in Section 4.14, Bank may amend any part of this Agreement, including any schedule hereto, from time to time immediately upon notice to Company.

4.18.3 Instructions and Notices.

(i) Except as otherwise expressly provided herein, Bank shall not be required to act upon any notice or instruction received from Company or any other person, or to provide any notice or advice to Company or any other person with respect to any matter.

(ii) Bank shall be entitled to rely on any oral or written notice, response, or other communication believed by it to be genuine and to have been provided by an authorized representative of Company whose name is set forth on the Master Agreement (each an "Authorized Representative"), and any such communication shall be deemed to have been provided by such person on behalf of Company. Company may add or delete any Authorized Representative by written notice to Bank as provided in the Master Agreement.

(iii) Except as otherwise provided herein, any notice under this Agreement must be in writing and delivered by express carrier, faxed or sent by United States registered or certified mail and:

If to Hanmi Bank:

Hanmi Bank
Treasury Management Department
3660 Wilshire Blvd., Suite. PH-A
Los Angeles, CA 90010
Phone Number: (844) 464-2664
Fax Number: (213) 427-5650

If to Company: The contact information set forth in the Master Agreement.

(iv) Unless another address is substituted by notice delivered or sent as provided herein. Notices must comply with any applicable Security Procedures. Except as otherwise expressly provided herein, any such notice shall be deemed given when received.

4.18.4 Assignment. Company may not assign its interest or rights under this Agreement without the prior written consent of Bank, and any purported assignment in violation of this section shall be void.

4.18.5 Successor and Assigns. This Agreement shall be binding upon and inure to the benefit of the parties' hereto and their respective legal representatives, successors and permitted assigns. This Agreement is not for the benefit of any other person, and no other person shall have any right against Bank or Company hereunder.

4.18.6 Headings. Headings used in this Agreement are for convenience only and shall not be deemed a part of this Agreement.

4.18.7 Governing Law and Venue. This Agreement shall be construed in accordance with and governed by the laws of the

State of California, excluding its conflict of law principles. For any dispute arising from this Agreement, the parties agree to submit to the jurisdiction of and be venued in the courts located in the County of Los Angeles, California.

5. ODFI ORIGINATION AGREEMENT FOR AUTOMATED CLEARING HOUSE SERVICES

Debit Origination

WHEREAS, Bank is a Participating Depository Financial Institution ("Participating Institution") of the Western Payments Alliance ("WesPay") and may initiate electronic fund transfer entries ("Entries") by means of the Automated Clearing House ("ACH");

WHEREAS, Company desires to initiate Debit Entries through Bank for deposit of funds to the accounts of Company's customers and other parties ("Customers") maintained at Bank and other Participating Institutions ("Accounts"). Such Entries may be referred to herein as "Debit Entries";

NOW, THEREFORE, Bank and Company agree as follows:

5.1 Rules. Company shall comply with the Operating Rules of WesPay and the Operating Rules of the National Automated Clearing House Association ("NACHA"), and any other applicable laws in existence as of the date of this Agreement and as amended from time to time (herein collectively referred to as the "Rules"). The terms of this Agreement shall in no way limit Company's obligation of complying with the Rules. Unless otherwise defined herein, capitalized terms shall have the meanings provided in the Rules. The term "Entries" shall have the meaning provided in the Rules and shall also mean (i) the data received from Company hereunder from which Bank prepares Entries, and (ii) for the purposes of Sections 5.8.3 and 5.8.4 any request from Company for reversal of an Entry.

5.2 Delivery of Entries to Bank.

5.2.1 Delivery Requirements. All Entries shall be delivered by Company to Bank to the location(s) and in compliance with the formatting and other requirements set forth by the Rules. The total dollar amount of Entries transmitted by Company to Bank on any one day shall not exceed the approved ACH debit limit.

5.2.2 Customer Authorizations and Record Retention. Before the initiation by Company of the first Entry to a Customer's Account, Company shall obtain from such Customer an authorization to initiate one or more Entries to the Customer's Account, which authorization shall comply with the Rules. Each Entry thereafter shall be made pursuant to such authorization, and no Entry shall be initiated by Company after such authorization has been revoked or the arrangement between Company and such Customer has terminated. Company shall retain Customer authorizations for two (2) years after they are terminated and other documents related to Entries for a period of two (2) years. Company shall immediately furnish such authorizations and documents to Bank upon Bank's request.

5.2.3 Prenotification. Company shall deliver a prenotification, in a format and in the medium set forth in ACH Debit Form and/or prescribed by the Rules to Bank to be transmitted to the Participating Institution at which the Customer's Account is held ("RDFI") within the time limits set forth in the Rules. If Company has received notice that such prenotification has been rejected within the prescribed period by the RDFI, Company shall not initiate any corresponding Entry until the cause for rejection has been corrected and another prenotification has been submitted to and accepted by the RDFI in accordance with the Rules. (NOTE: Providing a prenotification is optional. Section 5.2.4 should only be included in the Agreement if Company sends a prenotification).

5.2.4 Cancellation and Amendment of Entries; Reversals. Company shall have no right to cancel or amend an Entry after it is delivered to Bank. Bank, however, shall use reasonable efforts to act on a request by Company for reversal of an Entry file pursuant to the Rules; provided, however, that Bank shall not be liable for interest or losses if such reversal is not effected. Any request by Company for reversal of an Entry must comply with the Delivery Requirements and the Security Procedures. Company must notify Customer of the reversal of the Entry and the reason for the reversal of the Entry no later than the Settlement date of the reversal of the Entry. Company shall reimburse Bank for any expenses, losses or damages Bank may incur in effecting or attempting to effect Company's request for the reversal of an Entry.

5.3 Processing, Transmittal and Settlement by Bank.

5.3.1 Processing, Transmittal and Settlement. Except as provided in Sections 5.4, 5.5, and 5.9, Bank shall (i) process Entries received from Company to conform with the requirements set forth in this Agreement, (ii) transmit such Entries as an Originating Depository Financial Institution to an ACH selected by Bank in its sole discretion, and (iii) settle for such Entries as provided in the Rules.

5.3.2 Timing. Bank shall transmit such Entries to the ACH by the deadline of the ACH set forth in the Master Agreement one business day prior to the Effective Entry Date shown in such Entries, provided (i) such Entries are received by Bank's related cut-off time set forth in the Master Agreement on a business day, (ii) the Effective Entry Date is at least three days after such business day, and (iii) the ACH is open for business on such business day. For purposes of this Agreement (x) a "business day" is a day on which Bank is open to the public for carrying on substantially all of its business other than a Saturday or Sunday, and (y) Entries shall be deemed received by Bank in the case of transmittal by electronic transmission, when the transmission (and compliance with any related Security Procedure) is completed as provided in the Delivery Requirements. If any of the requirements of clause (i), (ii) or (iii) of the preceding paragraph is not met, Bank shall use reasonable efforts to transmit such Entries to the ACH by the next deposit deadline of the ACH following that specified in the Master Agreement which is a business day and a day on which the ACH is open for business.

5.4 On-Us Entries. Except as provided in Section 5.5, in the case of an On-Us Entry, Bank shall Debit the Receiver's account in the amount of such Entry on the Effective Entry Date contained in such Entry, provided the requirements set forth in clauses (i) and (ii) of Section 5.3.2 are met. If either of those requirements is not met, Bank shall use reasonable efforts to Debit the Receiver's account in the amount of such Entry on the next business day following such Effective Entry Date.

5.5 Rejection of Entries. Bank may reject any Entry for any reason. Bank shall notify Company of such rejection (either electronically, in writing, by telephone, or as otherwise agreed to by Bank and Company) no later than the business day after the Effective Entry Date. Bank shall not be liable to Company for the rejection of any Entry, for Company's non-receipt of a notice given to Company, or for the failure to give notice of rejection at an earlier time than that provided for herein. Bank shall not be required to pay Company interest on a rejected Entry for the period from rejection of the Entry to Company's receipt of the notice of rejection.

5.6 Notice of Returned Entries. Bank shall notify Company either electronically, in writing, by telephone, or as otherwise agreed to by Bank and Company of the receipt of an Entry returned by the ACH no later than one (1) business day after Bank's receipt of the returned Entry. Bank shall have no obligation to take other action with respect to a returned Entry.

5.7 Provisional Payment. Company represents to Bank and agrees that it shall be bound by the provision of the Rules making payment of an Entry by the RDFI to the Receiver provisional until receipt by the RDFI of final settlement for such Entry, and specifically acknowledges that it has received notice of that Rule and of the fact that, if such settlement is not received, the RDFI shall be entitled to a refund from the Receiver of the amount Debited and Company shall not be deemed to have paid the Receiver the amount of the Entry.

5.8 Security Procedures; Unauthorized and Authorized Entries; Inconsistent Entries.

5.8.1 Purpose of Security Procedures. Company agrees that the purpose of the Security Procedures is to verify the authenticity of Entries transmitted to Bank in the name of Company and not to detect an error in the transmission or content of any Entry, and that no security procedure for the detection of such errors has been agreed upon by Bank and Company.

5.8.2 Protection of Security Procedures. Company is strictly responsible to establish and maintain procedures to safeguard against unauthorized transmissions. Company warrants that no individual will be allowed to initiate transfers in the absence of proper supervision and safeguards, and agrees to take reasonable steps to maintain the confidentiality of the Security Procedures and of any passwords, codes, security devices and related instructions provided by Bank in connection with the Security Procedures. If Company believes or suspects that any such information or instructions are known or have been accessed by unauthorized persons, Company shall notify Bank immediately.

5.8.3 Unauthorized Entries. An Entry delivered to Bank that purports to have been transmitted or authorized by Company shall be effective as Company's Entry as provided herein even if the Entry was not in fact authorized by Company, provided Bank has accepted the Entry in compliance with the Security Procedures with respect to such Entry.

5.8.4 Authorized Entries. If an Entry received by Bank was transmitted or authorized by Company, it shall be effective as the Company's Entry as provided herein, whether or not Bank complied with the Security Procedures with respect to that Entry and whether or not that Entry was erroneous in any respect or that error would have been detected if Bank had complied with such procedure.

5.8.5 Inconsistent Entries. Company acknowledges and agrees that (i) if an Entry describes the Receiver inconsistently by name and account number, payment of the Entry transmitted by Bank to an RDFI might be made by RDFI (or by Bank in the case of an On-Us Entry) on the basis of the account number even if it identifies a person different from the named Receiver, and that Company's obligations to pay the amount of the Entry to Bank is not excused in such circumstances, and (ii) if an Entry describes the RDFI inconsistently by name and identifying number, payment of the Entry might be made by RDFI on the basis of the account number even if it identifies an RDFI different from the named RDFI, and that Company's obligation to pay the amount of the entry to Bank is not excused in such circumstances.

5.9 Company Account. Company shall at all times maintain sufficient available funds in a deposit account Company shall maintain at Bank (the "Company Account") to pay the amount of all Debit Entries fees and other amounts which Company is obligated to pay Bank under this Agreement. Bank in its sole discretion may require Company to have sufficient available funds in the Company Account to cover the amount of a Debit Entry prior to Bank's transmittal of such Entry to an ACH or Bank's Debiting of a Receiver's account in the amount of an On-Us Entry. In the absence of such a requirement, Company shall be obligated to have such available funds in the Company Account at such time on the Settlement Date with respect to such Entry, or in the case of an On-Us Entry, the date of Debiting the Receiver's account, as Bank, in its discretion, may determine. Bank may, without prior notice or demand, obtain payment of any amount due and payable to it under this Agreement by Debiting the Company Account, and may Debit the Company Account for any amount to which Company is entitled under this Agreement. If there are insufficient funds available in the Company Account to pay amounts Company owes Bank under this Agreement, Company shall pay any amounts due immediately upon demand, and Company agrees that Bank may debit any account maintained by Company with Bank or that Bank may set off against any amount it owes to Company, in order to obtain payment of Company's obligations.

5.10 Company's Representations, Warranties and Indemnification. Company represents and warrants that for each Entry Company delivers to Bank that: (i) the Entry is a Debit Entry and complies with the terms of this Agreement and the Rules; (ii) Company has complied with the Rules with respect to the Entry; (iii) there has not been and shall not later be any breach of any warranty of Company as an Originator or of Bank as an ODFI under the Rules; (iv) Company has not breached any warranty contained in this Agreement; and (v) the Entry complies with all local, State and Federal laws and regulations, including but not limited to the Electronic Fund Transfer Act, Regulation E and any applicable regulations issued by the Office of Foreign Assets Control. Company shall indemnify Bank against any loss, liability or expense (including attorneys' fees and expenses) resulting from or arising out of any breach of any of the foregoing representations or warranties.

5.11 Notices and Statements. Bank is not required to and will not provide Company or Customers with notice of receipt or Bank's transmittal or Debiting of Entries. Entries and other debits and Debits to the Company Account will only be reflected on the periodic statement for the Company Account. Company shall notify Bank of any unauthorized or erroneous Entries or any other discrepancy or error on the periodic statement within sixty (60) calendar days of receipt of the statement, after which the statement will be conclusively presumed to be correct. Bank shall not be liable for any interest or losses resulting from Company's failure to give such notice.

5.12 Liability of Bank; Limitations on Liability.

5.12.1 Performance of Bank. Bank shall be responsible only for performing the services it expressly agrees to perform in this Agreement, and shall be liable only for direct damages caused by its negligence in performing those services. Bank shall not be responsible for any acts or omissions of Company, including without limitation the amount, accuracy, timeliness of delivery or Customer authorization of any Entry received from Company, or any act or omission of any other person, including without limitation WesPay, any Federal Reserve Bank, any ACH or transmission or communications facility, any data processor of Company, or any Receiver or RDFI (including without limitation the return of an Entry by such Receiver or RDFI), and no such person shall be deemed Bank's agent.

5.12.2 Limit on Damages. In no event shall Bank be liable for any consequential, special, punitive, or indirect loss or damage which Company may incur or suffer in connection with this Agreement, including without limitation loss or damage from subsequent wrongful dishonor resulting from Bank's acts or omissions in performing its services under this Agreement.

5.12.3 Force Majeure. Bank shall not be responsible for any failure to act or delay in acting if such failure is caused by legal constraint, the interruption of transmission or communication facilities, computer malfunction or equipment failure, war, emergency conditions, or other circumstances beyond Bank's reasonable control. In addition, Bank shall be excused from failing to transmit or delay in transmitting an Entry if such transmittal would result in Bank's having violated any provision of any present or future risk control program of the Federal Reserve or any rule or regulation of any other governmental regulatory authority.

5.12.4 Interest. Subject to the foregoing provisions of this Section 5.12, any liability which Bank may have for loss of interest for an error or delay in performing its services hereunder shall be calculated by using a rate equal to the average Federal Funds rate of the Federal Reserve Bank of New York for the period involved, less any applicable reserve requirements.

5.13 Indemnification. Company shall defend, indemnify and hold harmless Bank, and its officers, directors, agents and employees, from and against any and all actions, costs, claims, losses, damages or expenses, including attorneys' fees and expenses, resulting from or arising out of (i) any breach of any of the agreements, representations or warranties of Company contained in this Agreement, or (ii) any act or omission of Company or any other party acting on Company's behalf, including but not limited to the parties described in Section 5.12.1 above.

5.14 Payment for Bank Services. Company shall pay Bank fees for the services provided by Bank under this Agreement in accordance with rate schedules published by Bank from time to time. For current schedule of fees, please refer to the Treasury Management Service Fee Schedule. Such charges do not include, and Company shall be responsible for payment of, any sales, use, or excise, value added, utility or other similar taxes relating to the services provided for in Company's agreement between Bank and Company with respect to the Company Account (the "Deposit Account Agreement"). Rate schedules may be changed by Bank upon thirty (30) calendar days prior notice to Company.

5.15 Termination. Bank may terminate this Agreement immediately by notice to Company, or without notice if Company breaches any of its obligations under this Agreement or the Rules. Company may terminate this Agreement by written notice to Bank at any time. As noted in the Master Agreement, your access to the System will be suspended within three (3) Business days of our receipt of your instructions to cancel the Service. Company will remain responsible for all transactions that occur prior to termination, whether termination by Company or by Bank, and for any fees and charges incurred prior to the date of cancellation. Termination shall not affect any of Bank's rights or Company's obligations under Sections 5.2.3, 5.10, 5.12, and 5.13 above or related to Entries initiated by

5.16 Company prior to such termination. Bank may hold any funds on deposit with Bank by Company after termination of this Agreement for up to ninety (90) days following the expiration of any return or chargeback rights regarding any Request or ACH entry processed by Bank under this Agreement or, if later, until any other claims to such funds have expired.

5.17 Tapes and Records. All magnetic tapes, Entries, Security Procedures and records used by Bank for transactions contemplated by this Agreement shall be and remain Bank's property. Bank may, in its sole discretion, make available such information upon Company's request. Any expenses incurred by Bank in making any such information available to Company shall be paid by Company.

5.18 Fees. Company agrees to pay the fees for originating ACH Debit service per transfer AND per transaction as listed in the TMS Fee Schedule in the Schedule D attached. Bank may deduct the fees from any account of the company at the Bank. The Bank may change the fees charged to the Company anytime during the term of this agreement. Bank may adjust these fees from time to time and will provide notice as dictated by the Master Agreement.

5.19 General Provisions.

5.19.1 Entire Agreement. This Agreement and the Master Agreement to which it is incorporated, including any other individual Service Agreements, and the applicable Deposit Account Agreement constitutes the entire agreement between Bank and Company. In the event of any inconsistency between the terms of this Agreement and the Deposit Account Agreement with respect to the ACH Services contemplated herein, the terms of this Agreement shall govern. In the event performance of the services provided herein in accordance with the terms of this Agreement would result in a violation of any present or future statute, regulation or government policy to which Bank is subject, and which governs or affects the transactions contemplated by this Agreement, then this Agreement shall be deemed amended to the extent necessary to comply with such statute, regulation or policy, and Bank shall incur no liability to Company as a result of such violation or amendment. No course of dealing between Bank and Company or usage of trade shall constitute a modification of this Agreement, the Rules or the Security Procedures or constitute an agreement between Bank and Company regardless of whatever practices or procedures Bank or Company may use.

5.19.2 Amendment. Except as provided in Section 5.14, Bank may amend any part of this Agreement, including any schedule hereto, from time to time immediately upon notice to Company.

5.19.3 Instructions and Notices.

(i) Except as otherwise expressly provided herein, Bank shall not be required to act upon any notice or instruction received from Company or any other person, or to provide any notice or advice to Company or any other person with respect to any matter.

(ii) Bank shall be entitled to rely on any oral or written notice, response, or other communication believed by it to be genuine and to have been provided by an authorized representative of Company whose name is set forth on the Master Agreement (each an "Authorized Representative"), and any such communication shall be deemed to have been provided by such person on behalf of Company. Company may add or delete any Authorized Representative by written notice to Bank as provided in the Master Agreement.

(iii) Except as otherwise provided herein, any notice under this Agreement must be in writing and delivered by express carrier, faxed or sent by United States registered or certified mail and:

If to Hanmi Bank:

Hanmi Bank
Treasury Management Department
3660 Wilshire Blvd., Suite. PH-A
Los Angeles, CA 90010
Phone Number: (844) 464-2664
Fax Number: (213) 427-5650

If to Company: The contact information set forth in the Master Agreement.

(iv) Unless another address is substituted by notice delivered or sent as provided herein. Notices must comply with any applicable Security Procedures. Except as otherwise expressly provided herein, any such notice shall be deemed given when received.

5.19.4 Assignment. Company may not assign its interest or rights under this Agreement without the prior written consent of Bank, and any purported assignment in violation of this section shall be void.

5.19.5 Successor and Assigns. This Agreement shall be binding upon and inure to the benefit of the parties' hereto and their respective legal representatives, successors and permitted assigns. This Agreement is not for the benefit of any other person, and no other person shall have any right against Bank or Company hereunder.

5.19.6 Headings. Headings used in this Agreement are for convenience only and shall not be deemed a part of this Agreement.

5.19.7 Governing Law and Venue. This Agreement shall be construed in accordance with and governed by the laws of the State of California, excluding its conflict of law principals. For any dispute arising from this Agreement, the parties agree to submit to the jurisdiction of and be venued in the courts located in the County of Los Angeles, California.

6. [RESERVED]

7. [RESERVED]

8. [RESERVED]

SIGNATURES FOLLOW ON NEXT PAGE,
followed by Exhibits

Client Authorization:

Authorized Signature

Name

Title

Date

Authorized Signature

Name

Title

Date

Authorized Signature

Name

Title

Date

Hanmi Bank (Branch or CSM):

Authorized Signature

Name

Title

Date

EXHIBIT A

Definitions:

- "Account(s)" means Company's account(s) at the Bank that are identified on the Master Agreement as accessible through the System, Solution and Solution Services into which Checks transmitted electronically will be deposited.
- "Account Agreement" with respect to any Account means Bank's standard Deposit Account Agreements and disclosures governing the Account, as they may be amended from time to time.
- "Armored Courier" means the company contracted independently by Client to provide transportation services (Deposit delivery and/or Change Order pick up).
- "Authorized Equipment" means equipment that has been approved by Hanmi Bank for use with the Software.
- "Bank", "Our", "Us", "We", "Hanmi" mean Hanmi Bank and/or a third party processor(s) engaged by Hanmi Bank to perform any part or all of the Service.
- "Business days" mean Monday through Friday (excluding holidays). All times refer to Bank's local time (PST).
- "Cash Vault Customer Service" means a group within Bank that handles all cash vault service related inquiries.
- "Cash Vault Facility" means each location maintained by Bank and listed in the User Guide for the Service as locations for receipt of Client's Deposits, as may be updated from time to time.
- "Change Order" means an order placed with Bank by Client for coin and currency and constitutes a withdrawal from Client's Account.
- "Check" means a draft that is payable on demand, drawn on or payable through or at an office of a United States Financial Institution, whether negotiable or not, and payable or endorsed to Company, and includes Original Checks and Substitute Checks. Such term does not include Non-cash Items or items payable in a medium other than United States money.
  [Note: Hanmi Bank's processing of items that do not meet this definition shall not constitute a waiver by Hanmi Bank or obligate it to process nonconforming items in the future. Hanmi Bank may discontinue processing of nonconforming items at any time, without cause or prior notice.]
- "Client", "Company", "You", "Your", "Client" mean customer of Bank and account holder authorized by Bank to use the System under the Service Agreements and/or the Master Agreement, as applicable, and anyone else authorized by that account holder to exercise control over the account holder's funds through the System.
-
- "Deposit" means cash and Items delivered on Client's behalf to a Cash Vault Facility for deposit into Client's account.
- "Deposit Deadline" means the time established by Bank in the User Guide for the Service as the deadline for receipt of Deposits on a business day (and which deadline may be changed from time to time by Bank).
- "Discrepancy" means a difference between the amount declared on the deposit ticket and the actual amount of that Deposit.
- "Documentation" means all documentation, manuals and instructions relating to the Program or the Authorized Equipment, which Hanmi Bank provides to Company from time-to-time pursuant to the Service Agreements and/or the Master Agreement, including without limitation documentation regarding installation and use of the Software.
- "Electronic Item" means a digitized image of a Check, an Image Exchange Item, or any other electronic version of a Check or other electronic item (such as items processable through the ACH system) approved by Bank for processing through the Program.
- "Electronic Funds Transfer/s" mean transfers to or from your Account/s using the System or Solution Services.
- ""Image Exchange Item" means a digitized image of a Check cleared and settled directly with a Payor Financial Institution without conversion to a Substitute Check.
- "Item" means any check or other non-cash item submitted for deposit to Client's account.
- "Non-cash Item" means an item that would otherwise be a Check, except that: (i) a passbook, certificate or other document is attached; (ii) it is accompanied by special instructions, such as a request for special advice of payment or dishonor; (iii) it consists of more than a single thickness of paper, except a Check that qualifies for handling by automated check processing equipment; or (iv) it has not been pre-printed or post-encoded in magnetic ink with the routing number of the Payor Financial Institution.
- "Original Check" means the first paper Check issued with respect to a particular payment transaction.
- "Payor Financial Institution" means the United States Financial Institution ordered in a Check to make payment to

the payee(s) named on the Check.

- "Program" means collectively the procedures, protocols, and software used by Bank and its licensors and contractors in connection with Remote Deposit Capture for the electronic processing of Checks, and includes without limitation the Software and the Services.
- "Regulation CC" means 12 C.F.R. Part 229, as it may be amended from time to time.
- "Services" means the services described in Exhibit B to be provided by Hanmi Bank, or an agent or designee of Hanmi Bank, to enable Company to process Checks digitally and through Substitute Checks.
- "System Services or Services" means the services provided pursuant to the Service Agreements and/or the Master Agreement, as applicable.
- "Software" means that portion of the software developed, licensed and/or provided by Hanmi Bank and its licensors for operation of the Program, that Hanmi Bank delivers or provides to Company hereunder.
- "Solution Services" shall mean the services provided pursuant to the Service Agreements within this Master Agreement only and shall refer to the receipt by Bank of electronic transmission(s) initiated by Company for which Bank will provide Company with provisional credit. The terms Solution Services shall not include or cover any services provided by the Armored Courier directly to Company and are expressly excluded from the Service Agreements and/or the Master Agreement.
- "Substitute Check" means a paper reproduction of a Check that satisfies the requirements and definition of "substitute check" set forth in Regulation CC.
- "United States Financial Institution" means (i) any person, located in the United States, engaged in the business of banking; (ii) a Federal Reserve Bank; (iii) a Federal Home Loan Bank; and (iv) to the extent it acts as a payor, the U.S. Treasury, the U.S. Postal Service, or a State or local government.

EXHIBIT B

SERVICE TERMS AND CONDITIONS

1. Hanmi Bank's Responsibilities

1.1 Hanmi Bank will deliver to Company, or otherwise provide access to, the Hardware Equipment (Scanner) and the Software.

1.2 Hanmi Bank will provide installation and training support as reasonably required for Company's implementation of the Program. Any onsite installation or training support outside the state of California shall be on such terms and conditions as the parties agree, including reimbursement for Hanmi Banks' reasonable travel costs.

1.3 Hanmi Bank will provide maintenance and support for the Software as reasonably necessary to permit Company's processing of Checks through the Program. Such maintenance and support shall include (i) corrections, work around and bug fixes, (ii) such modifications, enhancements and updates as Hanmi Bank elects to make generally available to its customers without additional license fees, and (iii) telephone support to Company during Hanmi Bank's regular business hours.

1.4 Hanmi Bank will accept for deposit to the designated Account digitized images of Checks that are transmitted to Hanmi Bank in compliance with the Service Agreements and/or the Master Agreement. Digitized images/anytime shall be deemed received upon successful receipt of the transmission of such images/anytime that are complete, usable, and adhere to the data specifications set forth in the Documentation. If the digitized images/anytime are not complete, are not useable, or do not adhere to such data specifications, the images/anytime may not be processed by Hanmi Bank or its agents, in which event Company's deposit will be adjusted and notification will be provided.

1.5 The Service is available for use anytime except during maintenance periods, or such other hours as established by Hanmi Bank from time to time. Transmissions processed after 7:00 PM on a business day, or on any day that is not a business day, are treated as occurring on the next business day.

1.5.1. Checks processed for deposit through the Service will be deemed to have been received by Hanmi Bank for deposit at the time the Electronic Items are actually received and accepted at the location where Bank or its designated agent posts the credit to the Account. A deposit of Electronic Items will be deemed to have been received and accepted by Hanmi Bank for deposit when all of the following have occurred: (i) Hanmi Bank has preliminarily verified that the image quality of the Electronic Items is acceptable to Hanmi Bank in its discretion, all Check information is complete and the deposit totals are balanced to the Check information provided for the deposit; and (ii) Hanmi Bank has successfully performed all further validation routines with respect to the deposit. Notwithstanding the foregoing, Checks received by Hanmi Bank for deposit may be rejected by Hanmi Bank in Hanmi Bank's sole discretion.

1.5.2. Checks will be processed and ready for presentment by Hanmi Bank after Hanmi Bank receives all good digitized images and associated data for any given transmission from Company. Hanmi Bank will use commercially reasonable efforts to present Checks or corresponding Electronic Item to the applicable endpoint within a reasonable period of time following such receipt.

1.5.3. If a Check is not accepted for deposit, Company may then submit the original voided Check for processing or contact the maker to reissue the Check. If Company submits the original voided Check for processing, Bank reserves the right to refuse to process the Check for deposit and presentment to the Payor Financial Institution and may instead require Company to have the maker reissue the Check.

1.5.4. It is Company's responsibility to understand and build into its transmission schedules the appropriate deadlines necessary to meet the availability schedules of Hanmi Bank. Company is further responsible for understanding and building into its transmission schedule the changes in transmission windows required by time changes associated with Daylight Savings Time.

1.6 Company's digitized images/anytime will be processed after Hanmi Bank has received Company's transmission of the digitized images. Hanmi Bank will use commercially reasonable efforts to present the Electronic Items for payment. Unless Hanmi Bank notifies Company otherwise, Hanmi Bank will provide same day credit to the Account for all items transmitted by Company and received by Hanmi Bank in accordance with the requirements of the Service Agreements and/or the Master Agreement and the Documentation.

1.7 For all Checks processed by Company pursuant to the Service Agreements and/or the Master Agreement, either (i) digitized images will be converted to Substitute Checks and presented for payment to established endpoints, or (ii) Image Exchange Items will be presented for payment through image exchange networks. Hanmi Bank may in its sole discretion determine the manner of processing. All such processing and presentment shall be done in accordance with time frames and deadlines set forth in the Service Agreements and/or the Master Agreement or as otherwise established by the Bank from time to time.

1.8 If a Payor Financial Institution returns an item to Hanmi Bank, Hanmi Bank will charge the Account for such returned item, and may either (i) return the item to Company, or (ii) re-present it to the Payor Financial Institution before returning it to Company. Items may be returned as Image Exchange Items, rather than Substitute Checks, as agreed by the parties. If a Payor Financial Institution or other third party makes a claim against Hanmi Bank or seeks a recredit with respect to any Check processed hereunder, Hanmi Bank may provisionally freeze or hold aside a like amount in the Account pending investigation and resolution of the claim.

1.9 Hanmi Bank may suspend immediately the Services or the processing of any Check or corresponding Electronic Item if Hanmi Bank has reason to believe in its sole discretion that there has been a breach in the security of the Program, fraud involving Company's Account or any Original Voided Check processed or deposited by Company, or any uncertainty as to the authorization or accuracy of Electronic Items. Hanmi Bank reserves the right at any time to process Electronic Items on a collection basis in which case the funds availability for deposits established by Hanmi Bank will not be applicable.

1.10 Hanmi Bank will provide support for the Hardware equipment as reasonably necessary to permit Company's processing of Checks through the Program. Such support shall include (i) telephone support to Company during Hanmi Bank's regular business hours, (ii) replacement of any hardware equipment provided by Hanmi Bank.

1.11. Hanmi Bank shall be excused from failing to act or delay in acting if such failure or delay is caused by legal constraint, interruption of transmission, or communication facilities, equipment failure, war, emergency conditions or other circumstances beyond Hanmi Bank's control. In the event of any of the foregoing failure or delays, Company acknowledges that it may instead deposit directly with Hanmi Bank any Original Checks for processing and presentment provided such Original Checks have not been previously imaged and processed in connection with the Services. In addition, Bank shall be excused from failing to transmit or delay in transmitting an Electronic Item if such transmittal would result in Bank's having exceeded any limitation upon its intraday net funds position established pursuant to Federal Reserve guidelines or if Bank's otherwise violating any provision of any risk control program of the Federal Reserve or any rule or regulation of any other U.S. governmental regulatory authority.

1.12 Company acknowledges that Hanmi Bank may from time to time establish minimum amounts to be funded by Company as reserve amounts. Hanmi Bank will provide notice to Company of any reserve requirement, and Company shall immediately fund the reserve amount with good funds. Hanmi Bank may withhold and use any amounts due to Company to maintain any reserve amounts at levels specified by Hanmi Bank.

1.13 To secure all obligations of Company to Hanmi Bank arising from this the Service Agreements and/or the Master Agreement. Company grants to Hanmi Bank a security interest in all accounts of Company at Hanmi Bank, all funds in those accounts, any reserve accounts or funds therein, all Electronic Items (including any funds in process of settlement), whether now or hereafter established by or for the benefit of Company at Hanmi Bank, and all proceeds of the foregoing. Hanmi Bank's security interest will survive after termination of this the Service Agreements and/or the Master Agreement. This security interest is supplemental to and not in lieu of the security interest granted by Company to Hanmi Bank under any other agreement.

2. <u>Company's Responsibilities</u>

2.1. Company will maintain an Account at Hanmi Bank for the receipt of deposits of digitized images/anytime of Checks, in accordance with applicable Account Agreement.

2.2 Company will install the Software in accordance with the Documentation, and will install and implement any changes and upgrades to the Software as Hanmi Bank may require, within 30 days of receipt of such change or upgrade, or within such shorter time frame as Hanmi Bank may reasonably require in the event such change or upgrade is necessary to comply with statutory or regulatory changes or developments, or to protect the integrity and security of the Program.

2.3. Company may use only Authorized Equipment in connection with the Software. Unless otherwise provided in an addendum to the Service Agreements and/or the Master Agreement or in a separate agreement, Company, and not Hanmi Bank, shall be responsible for ordering, obtaining and maintaining all Authorized Equipment.

2.4. Company will use the Authorized Equipment and the Software, including the entering, processing and transmittal of items, in accordance with the Documentation. Without limiting the foregoing, Company will comply with all security procedures described in the Documentation, and will not bypass, override or disable any security mechanisms in the Authorized Equipment or Software.

2.5. Company will ensure the Authorized Equipment is clean and operating properly, and inspect and verify the quality of images and that the digitized images/anytime of Checks are legible for all posting and clearing purposes.

2.6. Company will be responsible for training its employees in the use of the Program, and for supervising and auditing their use of the Program.

2.7. Company will ensure that no financial institution (depositary, collecting or payor), drawee, drawer or endorser with respect to a Check processed by Company will receive presentment or return of, or otherwise be charged for, the Check (including the Original Check or Substitute Check), corresponding Electronic Item, and/or other paper or electronic representation of the Check such that such person will be asked to make payment on the Check more than once.

2.8. Company will retain each Check for a reasonable period of time, but in no event fewer than 60 days after such Check has been digitized and processed. Company will promptly provide any retained Check (or, if the Check is no longer in existence, a sufficient copy of the front and back of the Check) to Hanmi Bank as requested to aid in the clearing and collection process or to resolve claims by third parties with respect to any Check. Company will use a commercially reasonable method approved by Hanmi Bank to destroy Checks after the Company's retention period has expired.

2.9. Company will retain all information about its digitizing of Checks as created by the Software for no less than 7 days. In the event of lost, mistaken, incomplete or unusable Electronic Items, or in the event of claims of fraud, alteration, counterfeit or otherwise, Company shall cooperate fully with Hanmi Bank in providing information, including access to such records.

2.10. Company will be responsible for return hardware equipment provided by Hanmi Bank when the Company cancels Electronic Check Processing service or close account by any reasons. Company will be responsible and liable to Bank for all lost, stolen or damaged equipment that was provided by Bank to Company in connection with the Service.

2.11. Company will be responsible for the maintenance of the hardware, especially as to the periodic cleaning that may be required.

EXHIBIT C

INTELLECTUAL PROPERTY PROVISIONS

1 Protection and Security of Software and Documentation

1.1 Company will establish reasonable precautions and use commercially reasonable efforts, no less rigorous that those Company uses to protect its own confidential information to protect and maintain the confidentiality and security of the Software and the Documentation. Without limiting the generality of the foregoing, Company will use reasonable measures to protect the Software and Documentation from unauthorized copying, dissemination, disclosure or other unauthorized use.

1.2 Company will not, and will not permit any third party to, (i) copy or use the Software or Documentation except as expressly authorized by the Service Agreements and/or the Master Agreement (including its Schedule); (ii) sublicense, rent, distribute, transfer, publish, disclose, display or otherwise make available the Software to others; (iii) use the Software or Documentation for third-party training, commercial time-sharing or service bureau use; or (iv) alter, change, modify or otherwise create derivative works of the Software or Documentation.

1.3 Company will not, and will not permit any third party to, reverse engineer, disassemble or decompile any Software, except to the extent expressly permitted by applicable law. If Company intends or begins to take any such action based on any applicable law, Company shall notify Hanmi Bank and Hanmi Bank shall have the right to immediately terminate the Service Agreements and/or the Master Agreement and/or the license to the Software upon notice to Company.

1.4 Company will maintain a complete and accurate list of all locations where Company has loaded and maintains the Software, and make such list available to Hanmi Bank upon Hanmi Bank's request.

2 Ownership of Intellectual Property

2.1 Company acknowledges and agrees that all right, title and interest in and to the Software and the Documentation, together with modifications, enhancements and derivative works, and all intellectual property rights such as copyrights, patents, and trade secrets, pertaining to the Software and the Documentation, (i) are and shall remain owned exclusively throughout the universe by Hanmi Bank and its licensors, (ii) represent or contain valuable rights of Hanmi Bank and its licensors, and (iii) are protected under United States patent, copyright, trademark and trade secret laws of general applicability. The Service Agreements and/or the Master Agreement does not create in Company any rights to, and does not constitute an assignment of any rights of Hanmi Bank or its licensors in and to, any copyrights, trade secrets, patents, or other intellectual property rights of Hanmi Bank or such licensors. Other than the license set forth above in the Schedule, no other license or interest in the Software or Documentation, either express or implied, is granted under the Service Agreements and/or the Master Agreement.

2.2 Company will not at any time, either directly or indirectly, (i) put to issue the scope, validity or ownership of Hanmi Bank's or its licensors' intellectual property rights in the Software and Documentation; (ii) do any act which could reasonably be expected to impair the scope, validity or ownership of such intellectual property rights, or (iii) assert any ownership rights to the Software or Documentation. Company acknowledges and agrees that the Service Agreements and/or the Master Agreement does not grant or convey to Company (i) an interest in or to the Software or Documentation, but only a limited right of use, revocable in accordance with the terms hereof; or (ii) any right, title, interest or license in or to any trademark of Hanmi Bank or its licensors, other than the right to use "powered by Hanmi Bank".

2.3 Company hereby assigns to Hanmi Bank and/or its licensors, as directed by Hanmi Bank, any rights, including any patent, copyright, mask work rights, trademarks, and trade secrets, which Company may now have or which it may acquire at any time in the future to the Software or the intellectual property rights to the Software, and any other computer code using any of the Software.

2.4 Company shall not remove or alter any copyright, trademark, or other intellectual property or proprietary right notices, legends, symbols or labels appearing on or in the Software, Documentation or any packaging, and shall include on any copy of the Software or Documentation any copyright, trademark, or other intellectual property or proprietary right notices contained on the original.

2.5 Company will (i) cooperate with Hanmi Bank and its licensors to protect the Software, including in connection with any lawsuits or disputes involving the Software; (ii) promptly notify Hanmi Bank and provide to it relevant background and other facts upon becoming aware of any actual or potential claim made by a third party regarding infringement, misappropriation, imitation, illegal use or misuse, or reasonable likelihood thereof, by the Software; and (iii) in the event of any actual or potential infringement, misappropriation, imitation, illegal use or misuse, or reasonable likelihood thereof of the Software by others, (a) grant to Hanmi Bank and its licensors the sole right to determine the course of action with respect to such infringement and to bring any proceeding with respect thereto, and to settle, and collect any settlement amount or judgment for any such proceeding, and (b) agree that such licensors shall be solely entitled to any proceeds of any such proceeding, including without limitation any settlement proceeds, insurance proceeds, arbitration award, judgment, or other consideration in any form.

3 Termination. Company acknowledges and agrees that its license to the Software and Documentation will terminate upon the earlier to occur of (i) termination of the Service Agreements and/or the Master Agreement, or (ii) termination of Hanmi Bank's license to the Software and Documentation.

4 Limitation on Liability. HANMI BANK'S LICENSORS SHALL HAVE NO LIABILITY OF ANY NATURE TO COMPANY, OR ANY THIRD PARTY, FOR DAMAGES, LIABILITIES OR CLAIMS, WHETHER IN CONTRACT, TORT, FOR NEGLIGENCE, INFRINGEMENT OR OTHERWISE, INCLUDING BUT NOT LIMITED TO, DAMAGES, LIABILITIES OR CLAIMS ARISING FROM OR UNDER THIS the SERVICE AGREEMENTS AND/OR THE MASTER AGREEMENT, ERROR IN THE SOFTWARE, OR FOR ANY INJURY, DAMAGE OR LOSS RESULTING FROM SUCH ERROR, OR FROM ANY USE OF THE SOFTWARE. NOTWITHSTANDING THE GENERALITY OF THE FOREGOING, IN NO EVENT WILL SUCH LICENSORS IBE LIABLE FOR ANY CONSEQUENTIAL, INDIRECT, INCIDENTAL, SPECIAL OR PUNITIVE DAMAGES, OR ANY LOST PROFITS OR LOSS OF ANY OPPORTUNITY OR GOOD WILL, EVEN IF SUCH LICENSORS HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH.

5 Compliance with Law. Company shall not export, re-export or otherwise transfer, directly or indirectly, the Software or any portion thereof to any location outside the United States without first complying with all applicable foreign and United States federal, state and local laws, rules, regulations or controls (including without limitation those regarding import, export, marketing, distribution or use of software programs).

6 Assignment. Company may not assign the license granted hereunder to any party whatsoever, except in connection with an assignment of the entire the Service Agreements and/or the Master Agreement, subject to the terms of the the Service Agreements and/or the Master Agreement. Any attempted assignment of the license in violation of this Section shall be void.

7 Further Assurances. Company will, at its expense, promptly execute and deliver such further documents and take any and all other actions reasonably requested by Hanmi Bank from time to time, for the purpose of fully effectuating the intent and purposes of this Schedule, and to protect the interests of Hanmi Bank, its licensors, and their respective successors and assignees.

8 Injunctive Relief. Company acknowledges that violation of its commitments regarding the Software, as outlined in Sections 2.4, 2.5 and 6 of this Schedule, may cause irreparable injury to Hanmi Bank and/or its licensors, and agrees that Hanmi Bank shall be entitled to seek and obtain temporary and preliminary injunctive relief in a court of competent jurisdiction, without the necessity of proving actual damages or posting a bond, to prevent such violation.

9 Survival. Company agrees that the provisions of Sections 2, 4, 5, 7, 8, and 9 of this Exhibit shall survive termination of the license granted hereunder and the termination of this Agreement.

EXHIBIT D

FEE SCHEDULE (Effective: 07/01/2024)

Wire	
Incoming Wire	No fee
Incoming Wire Returning	$20 (per return)
Outgoing Wire – International/Domestic	$20 (per wire)
Investigation Fee	$ 150 (per hour)
Amendment Fee	$ 25 (per request)
Trace Fee	
Domestic Wire	$ 5.00 (per trace)
International Wire	$ 10.00 (per trace)
Daily Outgoing Wire Limit	
Business Advantage Checking	$250,000 (per day)
Business Elite Checking	$1,000,000 (per day)
ACH	
One Time Setup Fee	No fee
Monthly Module Fee	No fee
ACH File Fee	$7 (per file)
ACH Transaction Fee	$0.30 (per item)
Exception Handling Fee	
Return	$10 (per item)
Notification of Change (NOC)	$3 (per item)
Daily Payables Limit	
Business Advantage Checking	$30,000 (per day)
Business Elite Checking	$500,000 (per day)
Daily Collection Limit	
Business Advantage Checking	N/A
Business Elite Checking	$50,000 (per day)
Positive Pay	
One Time Setup Fee	$ 100.00 (per client)
Payee Positive Pay	
Monthly Module Fee	$ 25.00 (per account)
ACH Positive Pay	
Monthly Module Fee	$ 25.00 (per account)
Remote Deposit Capture (RDC)	
One Time Setup Fee	
Initial Location	$ 100.00 (per location)
Additional Location (if there is any)	$ 50.00 (per location)
Monthly Module Fee	
RDC	$ 50.00 (per client)
Report View Fee	*Included*
Checks Deposited	$ 0.08 (per item)
Checks Deposited (MSB)	$ 0.12 (per item)
Deposit Ticket Fee	$ 1.25 (per item)